



Republic of the Philippines
SENATE
Pasay City

JOURNAL

SENATE SITTING AS AN
IMPEACHMENT COURT
ON THE IMPEACHMENT TRIAL OF
VICE-PRESIDENT
SARA ZIMMERMAN DUTERTE

IMPEACHMENT TRIAL NO. 19
TUESDAY, 25 AUGUST 2026

PREPARED BY THE
LEGISLATIVE JOURNAL SERVICE
SENATE OF THE PHILIPPINES

IMPEACHMENT TRIAL NO. 19

Tuesday, August 25, 2026

PROCLAMATION OF THE SERGEANT-AT-ARMS

The Sergeant-at-Arms, PMGen Alfred S. Corpus, commanded all persons, on pain of penalty, to keep silent while the Senate is sitting for the trial of the Articles of Impeachment against Vice President Sara Zimmerman Duterte.

CALL TO ORDER

At 10:00 a.m., Tuesday, August 25, 2026, with the Senate sitting as an Impeachment Court, the Senate President, Win Gatchalian, called the impeachment trial of Vice President Sara Zimmerman Duterte to order.

SILENT PRAYER

The Court observed a minute of silent prayer.

ROLL CALL

Upon direction of the Senate President, the Clerk of Court, Atty. Renato N. Bantug Jr., called the roll, to which the following senator-judges responded:

Aquino, B.	Padilla, R.
Cayetano, P. S.	Pangilinan, F. N.
Escudero, F. G.	Sotto III, V. C.
Gatchalian, W. T.	Tulfo, E. T.
Hontiveros, R.	Villanueva, J.
Lacson, P. M.	Villar, M. A.
Lapid, M. M.	Zubiri, J. M. F.
Marcos, I. R.	

With 15 senators present, the Chair declared the presence of a quorum.

Senator-Judges Ejercito, Tulfo (R), Go, Cayetano (A) and Villar (C) were also present.

Senator-Judges Estrada and Marcoleta were under detention and unable to attend.

Senator-Judge Legarda was on medical leave.

Senator-Judges Dela Rosa was absent.

In accordance with the *Rules of Procedure on Impeachment Trials*, Senate President Gatchalian recognized the duly-elected Presiding Officer, Senator-Judge Francis "Chiz" G. Escudero, to preside over the proceedings of the Impeachment Court.

APPROVAL OF THE JOURNAL

Upon motion of the Presiding Officer, there being no objection, the Body dispensed with the reading of the *Journal* of the Senate sitting as an Impeachment Court on August 24, 2026 and considered the same as approved.

CALLING OF THE CASE

Upon direction of the Presiding Officer, the Clerk of Court, Atty. Renato N. Bantug Jr., called Case No. 004-2026, entitled "*In the Matter of the Impeachment Trial of Vice President Sara Zimmerman Duterte.*"

APPEARANCES

The Presiding Officer directed the parties to enter their appearances.

Rep. Joel Chua entered the appearances previously entered, on behalf of the Prosecution.

Atty. Sheila Sison entered the same appearances on behalf of the Respondent.

REMARKS OF THE PRESIDING OFFICER

The Presiding Officer noted the Court's receipt of a request for stipulation from the Prosecution on certain circumstances and documents pertaining to Mr. Lemuel Ortonio, Assistant Chief of Staff of the Office of the Vice President (OVP), which Representative Chua confirmed. He recalled that the Lead Counsel for the Respondents had previously stipulated only on the first two points concerning Mr. Edward Fajarda, former Special Disbursement Officer of the Department of Education (DepEd).

On Mr. Ortonio, the Presiding Officer noted that the request had been received only the previous night, which Attorney Sison confirmed. She stated that the Counsel for the Respondent could stipulate only to Items 1, 2, 3, 4, 5, and 7, while the documents identified in the request would instead be addressed during the witness's presentation and cross-examination.

The Presiding Officer further noted that the documents listed in the request differed from those that Mr. Ortonio might identify pursuant to the Pre-Trial Order and the markings. Attorney Sison reiterated that the request had been received only the previous night, contrary to the Court's directive that requests for stipulation be furnished at least one day before the hearing. Counsel for the Respondent requested to first hear the prosecution's comment before responding. The Presiding Officer directed her to raise her other request for another lawyer to be recognized, at the appropriate time.

To abbreviate the proceedings, the Presiding Officer asked the Counsel for the Respondent to determine which documents were common exhibits. He explained that, absent any allegation or proof of fraud, palpable mistake, or lack of regularity, common exhibits marked by both parties would be deemed authentic and duly executed without requiring witness identification. He then allowed the parties five minutes to review the documents while the Court considered the ruling on Attorney Sison's August 12 manifestation.

Attorney Sison stated that the Counsel for the Respondent was amenable to stipulate to the items under Item 25, except Items 25-B and 25-V, which were not common exhibits. She added that five minutes would suffice to review the prosecution's documents.

The Presiding Officer stated that the Court would defer its ruling on the concern raised by Attorney Sison during the August 12 trial and give Counsel for the Respondent five minutes to review the documents before calling Mr. Ortonio.



SUSPENSION OF TRIAL

With the permission of the Court, the trial was suspended.

It was 10:10 a.m.

RESUMPTION OF TRIAL

At 10:16 a.m., the trial was resumed.

MANIFESTATION OF THE COUNSEL FOR THE RESPONDENT

With respect to the proposed stipulations on Item No. 25, Attorney Sison stated that Counsel for the Respondent could stipulate to the documents listed from Items A to V, subject to comment on the eventual offer.

The Presiding Officer thanked Attorney Sison for assisting the court in abbreviating the proceedings.

PRESENTATION OF WITNESS

Upon the request of Representative Chua, the Presiding Officer recognized Atty. Mae Divinagracia, Counsel for the Panel of Prosecutors, to present the next witness.

Attorney Sison also requested that Atty. Kristine Ferrer be recognized for the Respondent.

Attorney Divinagracia called on Mr. Lemuel G. Ortonio, Assistant Secretary and Assistant Chief of Staff of the Office of the Vice President (OVP).

The Presiding Officer directed the Clerk of Court, through the Office of the Sergeant-At-Arms (OSAA), to situate Mr. Ortonio at the witness stand, after which, the Clerk of Court administered his oath.

The Presiding Officer directed that the witness's affirmative response, which was inaudible, be placed on the record.

MANIFESTATION OF THE COUNSEL FOR THE PROSECUTION

Before proceeding with the offer, Attorney Divinagracia stated that she would read into the record the matters previously stipulated upon:

1. That the witness, Mr. Lemuel G. Ortonio, is the Assistant Secretary and Assistant Chief of Staff of the OVP;
2. He holds the position of Assistant Secretary at Salary Grade 29; and
3. His appointment is coterminous with the term of the Vice President; and fourth, his position is one of trust and confidence.

She further stated that the parties had stipulated to the authenticity and genuine execution of the documents listed in paragraph 25 of the request for stipulation and sought confirmation from Counsel for the Respondent on the same.

Attorney Ferrer confirmed the stipulations, subject to cross-examination.



OFFER OF EVIDENCE

Ms. Divinagracia. Your Honors, we are offering the testimony of Mr. Lemuel G. Ortonio to qualify him as a hostile witness and to prove the following:

- No. 1. The confidential funds answered to no legitimate confidential purpose. The amount was requested before the supporting plan was produced and the 2023 plan just repeated the operative language of the 2022 plan. *Nauna ang 250 million, sumunod ang plano matapos itong hingin ng DBM. Hindi plano ang nagtakda ng halaga. Ang halaga ang nauna, saka hinabol ang plano.*
- No. 2. The respondent's handprints are on every document that mattered. *Mula request hanggang liquidation, nasa mahahalagang dokumento ang kaniyang otoridad at pag-apruba.*
- No. 3. The reports were written to fit the rules, not the facts. *Apat na ulat, iisang template. Mga halagang hindi nagbabago at laging eksaktong 125 million, not a peso more, not a centavo less. Walang natira, walang isinauli.*
- No. 4. Five days after COA questioned the medical and food aid item, the line disappeared while the report still totaled exactly 125 million. *Kinuwestiyon ng Commission on Audit ang medical and food aid na may halagang 40 million, 42 million, at 40 million sa tatlong unang accomplishment reports. Makalipas ang limang araw, wala na ito sa huling accomplishment report, pero 125 million pa rin ang kabuuan ng halaga.*
- No. 5. In two years, not one area, not one operation was ever named. *Daang-daang area ang iniulat, 500 million ang ginastos, ngunit wala ni isang lugar, ni isang operasyon, ni isang petsa ang pinangalanan.*
- No. 6. The liquidation was late, irregular, and backdated. *Sampung buwan huli ang mga resibo. Mahigit isang daan ang may petsang isang taon pagkatapos ng diumano'y bayaran.*
- No. 7. The certifications vouch for nothing and were signed by the man who received the money. *Walang untoward incident, iyan lamang ang pinatutunayan. Walang halaga, walang pangalan, walang lugar, at walang petsa. At ang pumirma, ang mismong tumanggap ng pera.*
- No. 8. The 500 million bought protection the vice president already had and against threats the AFP and the PNP were already paid billions to watch. *Four hundred seventy-three sundalo at pulis na ang nagbabantay sa kaniya, sahod ng republika mula sa ibang pondo. Walang pangalawang pangulo sa kasaysayan ang nagkaroon ng ganito. At ang mga bantang tinutukoy sa mga ulat, ang NPA at mga teroristang grupo, sakop na ng intelligence funds ng AFP at PNP. Bayad na ang proteksyon, bayad na ang pagbabantay bago pa ang kahit isang piso ng confidential funds.*
- No. 9. The justification for the confidential funds shifted with every finding. *Sa DBM, safe implementation ng good governance programs, official engagements, and functional representation ng Pangalawang Pangulo. Sa mga plano, confidence-building for good governance programs, at pagsapit ng 2023, socio-economic program delivery. Sa mga certifications, surveillance and information gathering to prevent untoward incidents from transpiring. Sa Protective Intelligence Operations Reports, for intelligence gathering naman. Sa mga sagot sa Audit Observation Memoranda at Notice of Suspension, for surveillance activities to determine where best to implement the OVP's programs. Anim na bersiyon, iisang pondo.*
- No. 10. The officials knew, answered nothing. The man who says he knew nothing answered everything. *Lahat ng sagot sa COA, pirma ng testigong ito, na ang sabi, wala siyang personal na kaalaman. Ang mga tunay na nakakaalam—ang Respondent Vice President, ang Special Disbursing Officer, at ang colonel—wala ni isa ang sumagot.*
- No. 11. The explanations for the confidential funds are a sham, and the failure to account for the funds gives rise to the presumption of misappropriation. *Pabago-bago ang paliwanag, walang detalye, walang dokumentong sumusuporta. Pagtatakip, hindi pagpapaliwanag. At hanggang ngayon, hindi na-account ang P500 million ng bayan. Sa ganitong kabiguan, ang batas na mismo ang nagsasalita, prima facie na ipinalalagay na ang pondo ay ginamit para sa sariling kapakanan.*

That would be all for our offer, Your Honor.

The Presiding Officer. Comment, Attorney Kristine?

Ms. Ferrer. Yes, Your Honor. We note that the 11 items that were mentioned by the Prosecution are all conclusions of fact and law, Your Honor, and actually they are mere speculations and conjectures, Your Honor, not being proven before this Honorable Court, and they are all theories and, with all due respect, sound bites, Your Honor.

Nevertheless, we will cross-examine the witness to verify the allegations or to disprove the allegations of the Prosecution. Thank you.

Ms. Divinagracia. If I may just—

The Presiding Officer. They may be statements of fact or law, Counsel, but that's what they seek to prove through this witness, hopefully, by declaring him as a hostile witness in due time.

Duly noted. Comment of the Counsel for the Respondent is noted.

You may proceed with your direct examination, Attorney Mae.

REQUESTS FOR CONTINUING AUTHORITY

Attorney Divinagracia made the following requests for continuing authority:

Ms. Divinagracia. Your Honor, before I proceed, we would just like to request for a continuing authority for our assisting Counsel, Attorney Oliver C. Caedo, to approach the witness and present and confront him with the necessary and relevant documents whenever we mention those documents, Your Honor.

The Presiding Officer. Granted, as well as—Who would be the counterpart assisting Counsel from the Respondent, Attorney Kristine?

Ms. Ferrer. Yes, Your Honor, Atty. David Golla.

The Presiding Officer. Granted insofar as both parties are concerned in regard to their respective assisting Counsels who may approach the witness at any time during the direct and cross.

Ms. Divinagracia. And also, Your Honor, we request a continuing—a similar continuing authority for us to flash on the screen the relevant documents when mentioned for the appreciation of this Honorable Court and of everyone, Your Honor.

The Presiding Officer. Granted likewise, including a similar—a similar grant, rather, with Counsel for the Respondent should she desire to do so as well during her cross.

Ms. Divinagracia. Thank you, Your Honor.

DIRECT EXAMINATION OF THE WITNESS

The Presiding Officer. You may proceed, Counsel, when you are ready.

Ms. Divinagracia. Yes, Your Honor.

Good morning, Mr. Ortonio.

Mr. Ortonio. Good morning, Ma'am. *Maayong buntag*, good morning.

Ms. Divinagracia. Okay. Mr. Ortonio, *naiintindihan ko po na ikaw ngayon ay nagsisilbing Assistant Secretary and Assistant Chief of Staff sa Office of the Vice President. Tama po ba?*

Mr. Ortonio. That's correct *po*.

Ms. Divinagracia. *Kailan naman po kayo nagsimulang manungkulan bilang assistant secretary and assistant chief of staff sa Office of the Vice President?*

Mr. Ortonio. I started working as the Assistant Secretary and Assistant Chief of Staff last July 2022.



Ms. Divinagracia. Okay. Now, Mr. Ortonio, at whose pleasure do you serve those positions?

Mr. Ortonio. I report directly to the Vice President, Sara Z. Duterte.

Ms. Divinagracia. Okay. And prior to becoming Assistant Secretary and Assistant Chief of Staff, *saan naman po kayo nagtatrabaho, kung mayroon man?*

Mr. Ortonio. I used to work with the City Government of Davao as the head of the Human Resource Management Office.

Ms. Divinagracia. And *noong time po na iyon na nagsilbi kayo na head ng human resource management, sino naman po ang mayor noong panahong iyon?*

Mr. Ortonio. The mayor at that time was the Vice President, Sara Z. Duterte.

Ms. Divinagracia. And when did you serve as such, as head of the human resource department of the City Government of Davao City?

Mr. Ortonio. I started working as the head of the Human Resource Management Office in 2018—starting 2018.

Ms. Divinagracia. And *kanino naman po kayo nagre-report noong nanunungkulan kayo bilang head of the resource—human resource department?*

Mr. Ortonio. As the head of the human resource—as the Department Head, I report directly to the mayor and as well have reportorial duties to the City Administrator.

Ms. Divinagracia. Okay. And prior to that, Mr. Ortonio, *ano naman po ang inyong naging katungkulan, kung mayroon man, sa City Government of Davao City?*

Mr. Ortonio. Prior to being the human resource head, I also headed the Davao City Investment Promotion Center. That's from 2016 all the way to 2018 as well. And then, in 2010 to 2013, I served as the Chief of Staff of the Office of the Mayor; and 2008 until 2010, I served as the Chief of Staff under the Office of the Vice Mayor.

Ms. Divinagracia. Okay. *Isa-isahin po natin. Noong nanungkulan ho kayo bilang head ng Davao City Investment and Promotion Center, sino naman po ang nanunungkulan bilang mayor ng Davao City at that time?*

Mr. Ortonio. The mayor at that time was Vice President Sara Duterte.

Ms. Divinagracia. Okay. *Noong time naman po na nanungkulan kayo bilang chief of staff, sino naman po ang nanunungkulan bilang mayor at that time?*

Mr. Ortonio. It's the Vice President, Sara Z. Duterte.

Ms. Divinagracia. *At huli, noong nanungkulan ho kayo noong 2008 onwards, sino naman po ang nanunungkulan bilang vice mayor at that time?*

Mr. Ortonio. The vice mayor at that time was Vice President Sara Z. Duterte.

Ms. Divinagracia. Now, prior to 2008, *saan ho kayo nanunungkulan o nagtatrabaho, kung mayroon man?*

Mr. Ortonio. Prior to 2008, I worked with a government-owned and controlled corporation, and I also worked at a local chamber of commerce.

Ms. Divinagracia. *Maaari ninyo pong banggitin sa Korte na ito kung saan po iyon, iyong mga kumpanyang iyon?*

Mr. Ortonio. My first working experience was with the Pag-IBIG Fund; that was for four years, and then I worked around four or about four to six months with the Davao City Chamber of Commerce.

Ms. Divinagracia. Okay. Thank you. Mr. Ortonio, in October 2024, *ano naman po ang mga compulsory processes, if any, na natanggap ninyo mula sa House Committee on Good Government and Public Accountability?*

Mr. Ortonio. I was invited to appear before the committee hearings for the Committee on Good Governance.

Ms. Divinagracia. *At sa ano-anong petsa naman po kayo inimitahang mag-appear?*

Mr. Ortonio. As to the exact dates po, Ma'am, I cannot remember anymore the exact dates. However, there were several invitations that were extended to me.

Ms. Divinagracia. Okay, several invitations for several hearings. All right.

Mr. Ortonio. Yes, that is correct.

Ms. Divinagracia. *Ano naman po ang naging tugon ninyo doon sa mga iba't ibang imbitasyon na iyon?*

Mr. Ortonio. One of the reasons there was that it is a mere invitation—

Ms. Divinagracia. I'm sorry, Mr. Ortonio, I have to cut you. Please just be responsive so as not to waste this Honorable Court's time. The question is merely: What was your response to those invitations for you to appear? You mentioned several. So, what was your response?

Mr. Ortonio. The response was: "I will not attend the hearings."

Ms. Divinagracia. Okay. So, that was your response. What, if any, judicial remedy did you seek against or—yes, against those invitations?

Mr. Ortonio. Sorry, Ma'am, when you say judicial remedy, what do you mean by—

Ms. Divinagracia. Judicial relief. Did you ask for injunctive relief against the compulsion or the invitation for you to attend the hearings mentioned in those invitations?

Mr. Ortonio. The reason, Ma'am, was that it is a mere invitation *po*.

Ms. Divinagracia. No. Again, Mr. Ortonio, I'm sorry, I don't want to be difficult, but again, let me just remind you to please be just responsive to the question. The question is simply: What judicial relief, if any, did you apply for in response to those invitations?

Mr. Ortonio. If I can remember, Ma'am, none, Ma'am.

Ms. Divinagracia. Okay. And what was the subject matter of those hearings where you were invited, if you know?

Mr. Ortonio. It's regarding the confidential funds.

Ms. Divinagracia. Now, Mr. Ortonio, what is your relation with Mr. Ernesto Nemenzo Ortonio Jr., who is the president and a member of the board of directors of PN-X-Udenna Insurance Brokers Incorporated?

Ms. Ferrer. Your Honor, please.

The Presiding Officer. Attorney Kristine?

Ms. Ferrer. Relevance, Your Honor.

Ms. Divinagracia. It is very much relevant, Your Honor, because this would prove that this witness and the Respondent move in the same social circle, and this witness can practically become a social pariah if he speaks unfavorably of the Respondent.

The Presiding Officer. You're on a short leash, Counsel; go to your point. Objection is overruled.

Ms. Divinagracia. So, Mr. Ortonio, just to repeat the question. What is your relation with Mr. Ernesto Nemenzo Ortonio Jr., who is the president and a member of the board of directors of PN-X-Udenna Insurance Brokers Incorporated?

Mr. Ortonio. He is my father po.

Ms. Divinagracia. Okay. *At ano naman po ang relasyon ng PN-X-Udenna Insurance Brokers Corporation sa Udenna Management and Resources Corporation, which forms part of the Udenna Group founded and controlled by Mr. Dennis—*

Ms. Ferrer. Your Honor, please.

The Presiding Officer. Yes, Attorney Kristine.

Ms. Ferrer. Again, relevance, Your Honor, to the confidential funds. And she is on a short leash.

Ms. Divinagracia. Your Honor, if I may just seek your response?

The Presiding Officer. Attorney Mae, is this part of trying to qualify Mr. Ortonio as a hostile witness?

Ms. Divinagracia. Yes, Your Honor. This will establish that this witness has an adverse interest, Your Honor, in this case.

The Presiding Officer. With your indulgence, as well as with the permission of Counsels for the Parties, I think it has been established that Mr. Ortonio serves at the pleasure of the Vice President, has been working for her for quite some time, and is serving up to now—correct me if I'm wrong, Mr. Ortonio—with the Vice President.

Mr. Ortonio. That's right, Your Honor.

The Presiding Officer. And that, if the Vice President is impeached and therefore removed from office, *pati kayo matatanggal po, hindi ba, dahil coterminous kayo?*

Mr. Ortonio. That's correct, Your Honor.

The Presiding Officer. And that, as far as we know, until today, you are still working with the Office of the Vice President and serving under that capacity, coterminous?

Mr. Ortonio. Yes, that's correct, Your Honor.

The Presiding Officer. To abbreviate the proceedings, the Court declares Mr. Ortonio as a hostile witness based on his adverse interest *vis-à-vis* the Respondent and the Prosecution and that, therefore, Counsel Attorney Mae can ask leading questions, but, again, pursuant to the *Rules*, may not ask misleading questions.

You may proceed, Ma'am, accordingly.

Ms. Divinagracia. Thank you, Your Honor.

Mr. Ortonio, I am showing you a video, a video footage of the hearing of the CGGPA on November 25, 2024.

May I request, Your Honor, our assisting Counsel, who is stationed at the technical booth, to play the said video footage.

The Presiding Officer. Continuing authority has been granted to Counsels. You may proceed accordingly, Counsel.

[Audio-visual presentation]

Ms. Divinagracia. Thank you.

Okay. Mr. Ortonio, *ano ang relasyon mo sa Lemuel G. Ortonio na nabanggit sa video na aming ipinakita?*

Mr. Ortonio. That's me *po*, Ma'am.

Ms. Divinagracia. Okay. *At ano naman—tama ba, kinukumpirma mo ba na ang event na recorded diyan sa video footage na iyan ay ang hearing ng CGGPA noong November 25, 2024?*

Mr. Ortonio. That's correct *po*.

Ms. Divinagracia. *At, Mr. Ortonio, maaalala mo ba na sa hearing na iyan, sinabi mo, and I quote, "You provide overall supervision for the internal affairs of the Office of the Vice President." End of quote.*

Mr. Ortonio. That's correct *po*.

Ms. Divinagracia. *At pinapatotohanan mo rin ba na kasama ng superbisyon na iyan ang supervision sa Administrative and Financial Services Office at Strategy Management Office ng Office of the Vice President?*

Mr. Ortonio. That's correct *po*.

Ms. Divinagracia. *Ngayon, Mr. Ortonio, tama bang sabihin na ang Administrative and Financial Services Office, ito ang opisina sa Office of the Vice President na in charge sa pangkalahatang budget ng OVP?*

Mr. Ortonio. That's correct *po*.

Ms. Divinagracia. *Kasama dito ang budget preparation.*

Mr. Ortonio. That's correct *po*.

Ms. Divinagracia. *Budget disbursement, accounting, at liquidation.*

Mr. Ortonio. That's correct.

Ms. Divinagracia. *And since you exercise supervision over this office, sa pangkalahatan, tama bang sabihin, or generally, walang pondo ng OVP ang hinihiling, nilalabas, ginagastos o inili-liquidate na wala sa inyong kaalaman at superbisyon? Tama ba? Generally, Mr. Ortonio.*

Mr. Ortonio. Generally, yes.

Ms. Divinagracia. *Ngayon, ang Strategy Management Office naman, ito ang tanggapan ng OVP na nangangasiwa sa strategic planning, management, monitoring and evaluation, organizational development, at iba pang kaugnay ng tungkuling pamamahala ng OVP. Tama ba?*

Mr. Ortonio. That's correct.

Ms. Divinagracia. *So, kasama dito ang pagbuo at pagsubaybay sa mga programa, proyekto, at aktibidad ng OVP. Tama ba?*

Mr. Ortonio. That's correct.

Ms. Divinagracia. *So ngayon, dahil sa iyong pag-amin, tama rin bang sabihin na bawat programa ng OVP ay dumadaan sa SMO?*

Mr. Ortonio. For all the activities. Yes.

Ms. Divinagracia. *Yes. Okay. At dahil kayo ang nagsusuperbisa sa SMO, kayo rin ang nagsusuperbisa sa mga programa, proyekto, at aktibidad nito. Tama ba?*

Mr. Ortonio. General supervision *po*.

Ms. Divinagracia. *Yes. In short, or sa madaling salita, bawat programa ng OVP ay dumadaan sa inyong superbisyon nang dalawang beses. Una, kapag ito ay pinaplano ng SMO. At pangalawa, kapag binabayaran ito ng AFSO, tama ba?*

Mr. Ortonio. Yes *po*.

Ms. Divinagracia. *At tama rin bang sabihin na ang mga direktor ng dalawang opisina ng ito ay nag-uulat din sa iyo? Tama ba?*

Mr. Ortonio. That's correct *po*.

Ms. Divinagracia. *Also, tama rin bang sabihin na ang Vice President mismo ang nagtalaga sa inyo ng supervision over these two offices?*

Mr. Ortonio. Yes, that's correct, as part of the organizational structure.

Ms. Divinagracia. *Okay. At tama rin bang sabihin na kaugnay ng inyong supervision sa SMO at AFSO, ang anumang direktibang natatanggap ninyo ay sa huli, nagmumula sa Vice President?*

Mr. Ortonio. That's correct.

Ms. Divinagracia. *Okay. At tama rin ba na sa pagganap ng inyong mga tungkulin, sa huli, kayo ay nasasaklawan ng mga direksyon at instruction ng Vice President?*

Mr. Ortonio. That's correct.

Ms. Divinagracia. *In short, the official acts that you perform in the discharge of those responsibilities are done pursuant to the authority vested in you by the Vice President.*

Mr. Ortonio. That's correct.

Ms. Divinagracia. Now, *pumunta naman tayo ngayon*, Mr. Ortonio, *sa sulat kung saan nagsimula ang lahat*.

Okay. So, Mr. Ortonio, you assumed your position you mentioned earlier as Assistant Secretary and Assistant Chief of Staff *noon lamang July 1, 2022, tama ba?*

Mr. Ortonio. That's correct.

Ms. Divinagracia. So, that was midyear?

Mr. Ortonio. Yes.

Ms. Divinagracia. And you will confirm *na pag-assume mo ng inyong posisyon* around that time, *walang confidential fund ang Office of the Vice President, tama ba?*

Mr. Ortonio. That's correct *po*.

Ms. Divinagracia. Which means *na 'yung successor ni Vice President Sara Duterte na si Vice President Leni G. Robredo, walang confidential funds*.

Ms. Ferrer. Your Honor, please.

The Presiding Officer. Yes, Attorney Kristine.

Ms. Ferrer. No basis, Your Honor, and conclusion of fact.

The Presiding Officer. Kindly clarify. Leni is not the successor, Counsel.

Ms. Divinagracia. Sorry. Predecessor, Your Honor, I mean.

The Presiding Officer. Exactly. So, kindly reform, Counsel.

Ms. Divinagracia. Mr. Ortonio, do you confirm that Vice President Sara Duterte's predecessor, former Vice President Leni G. Orto—Sorry. Leni Robredo, Your Honor—Leni Robredo, she did not have confidential funds?

Ms. Ferrer. Your Honor, please.

The Presiding Officer. Yes, Counsel.

Ms. Ferrer. Incompetent. He is not a staff of Leni Robredo.

The Presiding Officer. If he knows. If he knows.

If you know, Mr. Ortonio, you may answer. If you don't, you may answer so as well.

Mr. Ortonio. Based on the records that we have, there's no record of confidential funds.

Ms. Divinagracia. *Ito ang dahilan kung bakit humiling ng confidential funds ang OVP sa DBM, tama ba, noong 2022, dahil wala kayong dinatnan na confidential funds nang pag-upo mo kasama ng pag-upo ng Vice President Sara Duterte? Tama ba?*

Mr. Ortonio. Yes, Ma'am.

Ms. Divinagracia. And this request for confidential funds, *ipinaabot ito sa DBM sa pamamagitan ng isang sulat, tama ba?*

Mr. Ortonio. Letter request.

Ms. Divinagracia. Yes, letter request.

Mr. Ortonio. Yes.

Ms. Divinagracia. *Ngayon*, I am showing you Prosecution's Exhibit P-I-4-a, dated August 22, 2022. *Ito ang nabanggit mong letter request for confidential funds in 2022, tama ba, Mr. Ortonio?*

Mr. Ortonio. Yes, correct.

Ms. Divinagracia. Okay. *Sa huling pahina nitong sulat na ito*, there appears a signature above the printed name Sara Z. Duterte. You will confirm that this is the signature of the Vice President?

Mr. Ortonio. Yes, I can confirm that this is the signature of the Vice President.

Ms. Divinagracia. Okay. And you are familiar with her signature—*pamilyar ka sa signature niya dahil sa panunungkulan mo* over almost two decades with her or under her, *nakikita mo siyang pumirma ng mga dokumento at nakikita mo rin ang kaniyang pirma sa iba't-ibang dokumento, tama ba?*

Mr. Ortonio. Yes, that's correct.

Ms. Divinagracia. And on the basis of this letter bearing her signature, *tama bang sabihin na ang desisyon na mag-request ng confidential funds*, it was the decision of the Vice President. *Tama ba?*

Mr. Ortonio. Yes, that is correct.

Ms. Divinagracia. And throughout these proceedings, a certain name has been repeatedly mentioned. *Paulit-ulit na nabanggit si "Colonel Lachica." Kilala n'yo siya, tama?*

Mr. Ortonio. Yes, I know him. He is the Group Commander for VPSPG.

Ms. Divinagracia. Okay. You mentioned, "Group Commander of the SPG." But you will confirm, Mr. Ortonio, *kukumpirmahin n'yo na noong Agosto 22, 2022, hindi pa naitatalaga si Colonel Lachica bilang Security Officer ng OVP. Tama ba?*

Mr. Ortonio. Yes, that is correct. He started September.

Ms. Divinagracia. Okay. Yes, in fact, he started only on September 1, 2022. *Tama ba?*

Mr. Ortonio. Yes, based on the documents.

Ms. Divinagracia. Okay. Let us now go to the September 16, 2022 letter. *Iyan ang nagpapatunay, Mr. Ortonio, na si Mr. Lachica or si Colonel Lachica ay noon lamang September 16 itinalaga bilang commander ng VPSPG. Tama ba?*

Mr. Ortonio. Yes, that is—wait. *Hindi masyadong clear po.*

Ms. Divinagracia. Your Honor, we may request our Assisting Counsel in the tech booth to kindly enlarge copies of the documents being flashed on the screen.

The Presiding Officer. Granted, so instructed.

Mr. Ortonio. Sorry, what is the question again, Ma'am?

Ms. Divinagracia. *Itong—Sa letter na ito, pinapatotohanan nito na si Colonel Lachica ay ina-appoint lamang o itinalaga lamang bilang Commander ng VPSPG noon lamang September 16, 2022. Tama ba?*

Mr. Ortonio. Yes for—Ma'am, I think the memorandum is the designation of Colonel Lachica as Security Officer.

Ms. Divinagracia. Sorry, Security Officer. Yes, Security Officer.

Mr. Ortonio. As a Security Officer, based on the document, yes.

Ms. Divinagracia. Okay. Now, *balik tayo doon sa letter dated August 22, 2022. Dito sa letter na ito*, you will confirm that the OVP requested four items: one, augmentation of financial assistance and subsidy; two, augmentation of special duty allowance; three, additional 192 co-terminus and contractual positions; and four, confidential funds. *Tama ba?*

Mr. Ortonio. Correct for the four items.

Ms. Divinagracia. And you will also confirm that at the time this document was sent to the DBM, *noong inihanda ang liham na ito at ipinadala sa DBM, naip plano na ng OVP ang mga aktibidad nito para sa nalalabing bahagi ng 2022. Tama ba?*

Mr. Ortonio. That is correct.

Ms. Divinagracia. That is correct. *Sa katunayan, para sa unang tatlong kahilingan, nakapagbigay na ang OVP ng basehan ng mga hiling na halaga. Nakalagay dito ang computation kung paano nakuha ang halagang hinihiling. Tama ba?*

Mr. Ortonio. That is correct.

Ms. Divinagracia. That is for the first three requests: the augmentation of financial assistance and subsidy, augmentation of special duty allowance, and additional 192 co-terminus and contractual positions. And *dahil rin na*-plot out n'yo na 'yung mga activities, programs, and plans ng OVP ng time na iyan, *nakapaglakip na rin kayo ng* supporting documents for the first three requests. *Tama ba?*

Mr. Ortonio. Yes. That is correct.

Ms. Divinagracia. *Pati 'yung projections, mga relevant projections for these three requests?*

Mr. Ortonio. That is correct.

Ms. Divinagracia. But, Mr. Ortonio, *kinukumpirma mo rin na* for the OVP's request for confidential funds in this letter, *walang computation na ibinigay. Tama ba?*

Mr. Ortonio. There were—

Ms. Divinagracia. For the—let us limit the answer to the letter. In that letter, no computation was provided. *Tama ba?*

Mr. Ortonio. That is correct. No computation.

Ms. Divinagracia. There was also no projection provided in the same letter. *Tama ba?*

Mr. Ortonio. Yes, that is correct.

Ms. Divinagracia. And also, there was no physical and financial plan attached to the letter.

Mr. Ortonio. For this letter request, none.

Ms. Divinagracia. Yes, none. In fact, there was no attachment supporting the OVP's request for confidential funds. Correct?

Mr. Ortonio. There were no attachments, Ma'am.

Ms. Divinagracia. Yes. There were no attachments in support of your request for confidential funds. *Tama? Okay.*

The Presiding Officer. Mr. Ortonio, what's your response?

Mr. Ortonio. Yes, that's correct. No attachments, Ma'am.

Ms. Divinagracia. And *tama rin bang sabihin na*, ultimately, *ang nag-decide kung magkano ang hihilingin na* confidential funds from the DBM *ay si Vice President Sara Duterte. Tama ba?*

Mr. Ortonio. Yes, the determination...

Ms. Divinagracia. Yes. Thank you, Mr. Ortonio.

Mr. Ortonio. ...for the amount is in the discretion of the Vice President.

Ms. Divinagracia. Yes. Thank you.

Now, going back to the letter, *dahil wala kayong binigay na* computation, projection, or supporting documents, *ang tanging nilagay lamang n'yo sa* request *ay ang* explanation *kung bakit kayo humihingi ng* request. *Tama ba?*

Mr. Ortonio. That's correct *po*.

Ms. Divinagracia. Yes, that's correct. And the explanation and the justification that you gave was, and I quote, "for and in consideration of the safe implementation of the various projects and activities under the good governance program and the conduct of official engagements and functional representation in international and domestic events as instructed by the Vice President," end of quote. *Tama ba?*

Mr. Ortonio. Yes, as instructed by the President.

Ms. Divinagracia. By the Vice President, okay—As instructed by the President. Okay.

In that same letter, you also stated and I quote, various—"you committed to formulate programs, projects, and activities relevant to national security and peace and order and is devoted to implement said PPAs with proper security and safety protocols for the benefit of the institution through the OVP satellite offices, its partner stakeholders, and the general public," end of quote. *Tama ba?*

Mr. Ortonio. That's correct.

Ms. Divinagracia. So, at this point, Mr. Ortonio, *tama ba*—

The Presiding Officer. With the permission of Counsel, can you ask your guy in the tech booth to kindly, whenever you refer to a portion of the letter, to zoom it in so that it's readable on the part of the Senator-Judges because we really cannot read any part of it.

Better. Thank you.

You may proceed, Counsel.

Ms. Divinagracia. Okay. So, *tama ba*, Mr. Ortonio, *na sabihin na nang pinadala n'yo ang sulat na ito, ang OVP wala pang* programs, projects, and activities *na naa-identify* relevant to national security and peace and order? *Tama ba?*

Mr. Ortonio. Based—

Ms. Divinagracia. *Dahil sabi dito sa* letter, you just commit to formulate programs, projects, and activities relevant to national security and peace and order. So, at that point, *wala pa?* *Tama ba?*

Mr. Ortonio. Based on the letter, Ma'am...

Ms. Divinagracia. Letter, yes.

Mr. Ortonio. ...there is a commitment to submit...

Ms. Divinagracia. Yes.

Mr. Ortonio. ...the plans and programs.

Ms. Divinagracia. No. You know, Mr. Ortonio, *walang sinasabi dito na* you commit to submit plans and programs. *Ang sinasabi dito, ...*

Mr. Ortonio. To formulate. Formulate.

Ms. Divinagracia. ..."formulate programs, projects, and activities." *Tama?*

Mr. Ortonio. Correct.

Ms. Divinagracia. And this is despite the fact *na kanina inamin mo na noong pinadala n'yo* *iyong* letter *na ito*, more or less *na-identify n'yo na 'yung mga* plans, projects, and activities of the OVP for the remainder of 2022. *Tama ba?*

Mr. Ortonio. For the—

Ms. Divinagracia. Yes? Yes?

Mr. Ortonio. For the plans and programs—

Ms. Divinagracia. Please just answer the question.

Ms. Ferrer. Your Honor, please, the witness is answering the question.

The Presiding Officer. Yes.

Ms. Divinagracia. Your Honor, the—if I may, Your Honor?

The Presiding Officer. Counsel, let the witness answer. He was in the process of answering it. Let's see if it is responsive or not. It can be stricken off if it's not.

Yes, Mr. Ortonio.

Mr. Ortonio. Thank you, Your Honor.

In the context of the plans and programs of the office, there has already been plans already at the beginning of the term of the Vice President in July of 2022. That's why we were able to implement already several programs and projects that we will be implementing for the rest of the year and for the rest of the term.

Ms. Divinagracia. Okay. But just to clarify, with respect to those plans, programs, and activities relating to national security and peace and order, *ito 'yung ipo-formulate n'yo pa lang* when you sent out this letter because that is what's stated in the letter. *Tama ba?*

Mr. Ortonio. That's correct.

Ms. Divinagracia. That's correct. And you will also confirm *na wala ng ibang* letter request for confidential funds in August 2022?

Mr. Ortonio. None.

Ms. Divinagracia. And *dahil wala pang* plans and—physical and financial plan *na kalakip doon sa* letter *n'yo* ng August 22, 2022, *sumulat sa OVP ang DBM* requesting your office to submit this physical and financial plan in support of your request for confidential funds. *Tama ba?*

Mr. Ortonio. Yes, that's correct.

Ms. Divinagracia. And the Vice President instructed you, *inutusan ka or inatasan ka ng Vice President na sumagot sa* letter *na ito ng DBM* dated September 15, 2022. I'm referring to Prosecution's Exhibit P-I-4-b.

Mr. Ortonio. Yes, we are in receipt of this communication.

Ms. Divinagracia. Okay. *At ikaw ang inatasan ng Vice President na sumagot sa* letter *na iyan. Tama ba?*

Mr. Ortonio. As part of my duties as the Assistant Chief of Staff, I regularly respond to communication addressed to the office.

Ms. Divinagracia. But Vice President knew very well that it was you who was responding to that letter of the DBM, correct?

Mr. Ortonio. Yes, because that's part of my duties po.

Ms. Divinagracia. Okay. Yes. And *hindi niya naman in-assign o inatas sa iba nang nalaman niya na ikaw ang sasagot, hinayaan ka niya at hindi niya sinabing iba na lang ang sumagot. Tama ba?*

Mr. Ortonio. Ma'am, for regular communications within the office, it is the Assistant Chief of Staff who signs the documents corresponding to other agencies. So, it's already inherent to the function as the Assistant Chief of Staff.

Ms. Divinagracia. Yes, Mr. Ortonio. But that is ultimately subject to the decision and discretion of the Vice President. *Tama ba?*

Mr. Ortonio. That's correct.

Ms. Divinagracia. So, *dahil iyan ay subject sa discretion ng Vice President*, anytime the Vice President can revoke that authority. *Tama ba?*

Mr. Ortonio. Yes.

Ms. Divinagracia. Now, following that instruction, you wrote a letter to DBM dated September 19, 2022. *Tama ba?* I'm referring to Prosecution Exhibit P-I-4-c.

The Presiding Officer. While you are showing the witness, Attorney Mae, the August 22, 2022 letter, what's the exhibit marking of that document if any? For the record.

Ms. Divinagracia. Sorry, Your Honor. P-I-4-a.

The Presiding Officer. P-I-4-a. Thank you.

Witness may answer pertaining to the September 19, 2022 letter if you are aware of it.

Mr. Ortonio. Yes, I signed the—this transmittal letter to the DBM.

Ms. Divinagracia. And in that letter, *tinukoy n'yo ang* Joint Circular 2015-01. *Tama ba?*

Mr. Ortonio. Yes.

Ms. Divinagracia. So, you must be familiar with that Joint Circular. *Tama ba?*

Mr. Ortonio. I'm familiar to a certain extent.

Ms. Divinagracia. Yes, to a certain extent. *At tiyak binasa at naunawaan n'yo rin ito. Tama ba?*

Mr. Ortonio. Yes.

Ms. Divinagracia. Yes. Because, Mr. Ortonio, you are an intelligent witness. You graduated with a bachelor's degree in arts in Ateneo de Davao University. *Tama ba?*

Mr. Ortonio. Communication Arts.

Ms. Divinagracia. Communication Arts. You also have a Master's in Development program from the University of the Philippines?

Mr. Ortonio. Yes, Development Communication.

Ms. Divinagracia. Development Communication. And another Master of Arts in Psychology, is that correct?

Mr. Ortonio. Yes.

Ms. Divinagracia. From Southville International School and Colleges?

Mr. Ortonio. That's correct.

Ms. Divinagracia. And a diploma course from the Ateneo de Manila Center for Organization Research and Development?

Mr. Ortonio. That's correct.

Ms. Divinagracia. In fact, you worked as a professor, *nagturo ka sa Ateneo de Davao University. Tama ba?*

Mr. Ortonio. Yes, for one semester only.

Ms. Divinagracia. Now going back to the letter, in that same letter, *ipinadala n'yo sa DBM ang* Physical and Financial Plan. *Tama ba?*

Mr. Ortonio. Yes, that's correct.

Ms. Divinagracia. And that was the first time, *inyang unang pagkakataon na nag-submit kayo ng* Physical and Financial Plan *sa DBM* in support of your request for confidential funds. *Tama ba?*

Mr. Ortonio. Yes, that's correct.

Ms. Divinagracia. And also, of course, *bago ninyo isinabmit* (submit) *ang kopya ng* physical and financial plan *na inyan*, I'm sure *iningnan at binasa ninyo at inintindi ninyo* *inyang* physical and financial plan. *Tama ba?*

Mr. Ortonio. Yes, I read the PFP.

Ms. Divinagracia. Okay. Your Honor, we would like to confront the witness with a physical and financial plan dated—bearing the date September 16, 2022, which is prosecution's Exhibit P-I-4-a, Annex E. So this is an attachment to Exhibit P-I-4-a as Annex E.

Okay. Mr. Ortonio, *dito sa box na may nakasulat* "Prepared by," *may kasama ring petsa*, September 16, 2022, *tama bang sabihin na itong* September 16, 2022, *ito inyang date kung kailan na-prepare itong* physical and financial plan?

Mr. Ortonio. Based on the document, ma'am, yes.

Ms. Divinagracia. Yes. Okay. *Ibig sabihin, noong nag-request kayo ng* confidential fund in August 2022, *wala pang nape-prepare na* physical and financial plan. *Tama ba?*

Mr. Ortonio. Yes.

Ms. Divinagracia. And this physical and financial plan was also approved only on September 16, 2022, as shown by the box bearing that date with the printed words "Approved by". *Tama ba?*

Mr. Ortonio. Yes, based on the document, ma'am. Yes.

Ms. Divinagracia. Based on the document. *At diyan sa box na may nakasulat na "Approved by," may pirma ulit above the printed name Sara Duterte. Iyan ang pirma—iyan ang pirma ng vice president. Siya mismo ang pumirma niyan, tama ba?*

Mr. Ortonio. Yes, that's her signature, ma'am.

Ms. Divinagracia. *At dahil walang naka-countersign katabi ng kaniyang signature, tama ba na iyang dokumento na iyan went straight to her without yourself or anyone reviewing that for her? Tama ba?*

Mr. Ortonio. I can just personally say, ma'am, that the document, ma'am, did not pass through my office.

Ms. Divinagracia. Okay.

The Presiding Officer. Before you continue, Counsel, the Court noticed that the signature of the vice president in this document appears to be different from the signature in the August 22 document. So the vice president has at least two signatures so far. Can you confirm that both are her signatures?

Mr. Ortonio. Yes. I can confirm, sir, Your Honor, that both are the signatures of the vice president.

The Presiding Officer. You can confirm likewise that they appear to be different though?

Mr. Ortonio. Yes, that's correct, Your Honor.

The Presiding Officer. Thank you. Your witness, Counsel.

Ms. Divinagracia. So you confirm, Mr. Ortonio, that this physical and financial plan was approved *matapos ang 25 days* from your request of confidential funds to the DBM. *Tama ba?*

Mr. Ortonio. Sorry. Can you repeat again the question, ma'am?

Ms. Divinagracia. That the physical and financial plan that was prepared 20 days after you requested confidential funds from the DBM. *Tama?*

Mr. Ortonio. I believe, ma'am, *parang* less than 20 days, ma'am, because the request was in August 2022, ma'am. More or less. Yes. That's correct.

Ms. Divinagracia. Correct?

Mr. Ortonio. Yes.

Ms. Divinagracia. And *dahil nabanggit mo iyong—sorry.* Now, the physical and financial plan indicated the supposed PPAs for which the confidential fund was allotted. *Tama ba?*

Mr. Ortonio. Yes, that's correct, based on the document, ma'am.

Ms. Divinagracia. *At ang nakasaad dito ay Good Governance Program. Tama ba?*

Mr. Ortonio. Yes, that's correct.

Ms. Divinagracia. There was no itemization of the programs and activities that will be funded by the requested confidential funds. *Tama ba?*

Mr. Ortonio. Yes, ma'am, based on the document presented.

Ms. Divinagracia. Yes. And you will confirm that this Good Governance Program, it's not just one particular program of the OVP? *Tama ba?*

Mr. Ortonio. Yes.

Ms. Divinagracia. It is in fact—*kukumpirmahin ninyo na itong Good Governance Program, ito ay umbrella program or umbrella brand ng flagship activities ng OVP. Tama ba?*

Mr. Ortonio. Yes, that's correct.

Ms. Divinagracia. So, under that Good Governance Program, *mayroong mga partikular na plans, programs, and activities. Tama ba?*

Mr. Ortonio. Yes.

Ms. Divinagracia. *Kasama dito iyong medical assistance, burial assistance, libreng sakay, mga satellite offices. Tama ba?*

Mr. Ortonio. Yes, that's correct.

Ms. Divinagracia. Okay. *Subalit wala nitong mga partikular na activities na ito na isinaad sa physical and financial plan na inyong sinabmit (submit). Tama ba?*

Mr. Ortonio. Yes, based on the submitted PFP.

Ms. Divinagracia. Okay. You will also confirm *na itong flagship program na good governance program, ito ay pinopondohan na ng regular budget ng OVP sa ilalim ng General Appropriations Act. Tama ba?*

Mr. Ortonio. Yes.

Ms. Divinagracia. Okay. *Sa katunayan; sa 2022 GAA, may line item na ± 621.6 million na mismong para sa good governance engagements and social service projects. Tama ba?*

Mr. Ortonio. Again, *hindi ko lang po makita iyong—*

Ms. Divinagracia. May we kindly request the tech booth to enlarge the image being flashed on the screen.

Mr. Ortonio. Yes, correct, 621 million.

Ms. Divinagracia. *Kanina binasa ninyo na sa liham ng August 22, kasama bilang explanation para sa paghingi ninyo ng confidential funds ang two other purposes, ito iyong official engagements at functional representation in international and domestic events. Tama ba, naalala ninyo?*

Mr. Ortonio. Yes, that's included in the letter request.

Ms. Divinagracia. *Subalit sa physical and financial plan para sa huling quarter ng 2022, tinanggal na itong dalawang additional items na ito, tama ba? Natira na lamang iyong good governance program.*

Mr. Ortonio. Based on the document, ma'am, that was submitted.

Ms. Divinagracia. *At ang dahilan nito, you will confirm, na itong dalawang programs na ito, hindi ito allowed under the joint circular that you cited in your September 19, 2022 letter, tama ba?*

Mr. Ortonio. As to the specifics for these two items, ma'am, I cannot answer.

Ms. Divinagracia. Okay. Okay.

Mr. Ortonio. Yes, ma'am.

Ms. Divinagracia. Thank you.

Now *punta naman tayo sa 2023 physical and financial plan. You will confirm na bilang assistant secretary at assistant chief of staff ng OVP, pamilyar din kayo dito sa 2023 physical and financial plan.*

Mr. Ortonio. I was able to see it, ma'am.

Ms. Divinagracia. Yes. In fact, *isa sa mga signatories dito sa physical and financial plan na ito ay si Ms. Rosalynne Sanchez, tama ba?*

Again, may we request the tech booth to enlarge the document being flashed on the screen.

Mr. Ortonio. Yes, ma'am, correct.

Ms. Divinagracia. Okay. *At itong si Ms. Rosalynne Sanchez, siya naman ang director ng AFS so—*

Mr. Ortonio. Yes.

Ms. Divinagracia. *Na sabi mo nagre-report din sa iyo, tama ba?*

Mr. Ortonio. Directly to me. Yes, ma'am.

Ms. Divinagracia. Okay. Now going back to that physical and financial plan, you will confirm that the expected outcome, physical targets, budget for the fourth quarters of 2023 *na isinulat dito* are just verbatim reproductions of the expected outcome physical targets and budget in the 2022 physical and financial plans. In short, *iyong* expected outcome, physical targets, *at* budget *para sa apat na quarter na nakasaad dito sa 2023* physical and financial plan, *salita or salitang kinopya ang* expected outcome, physical targets, *at* budget *sa 2022* physical and financial plans. *Tama ba?*

Mr. Ortonio. Based on the document, ma'am...

Ms. Divinagracia. Yes.

Mr. Ortonio. ... it has the same content, ma'am.

Ms. Divinagracia. *Ang tanging pagkakaiba lamang ay ang nakasaad na* physical activities and projects. *Dito sa 2023* physical and financial plan, *ang nakasaad na* PPA *ay* socio-economic program and delivery. *Tama ba?*

Mr. Ortonio. Yes, that's correct.

Ms. Divinagracia. But you will also confirm that like the good governance program, *iyong* socio-economic program delivery, *hindi rin ito isang partikular na programa*. This is just an umbrella brand for the flagship programs of the OVP for 2023, *tama ba?*

Mr. Ortonio. Yes, that's correct.

Ms. Divinagracia. *Sa ilalim niyan, mayroong mga partikular din na programa*, individual and particular projects. *Tama ba?*

Mr. Ortonio. Yes, that's correct.

Ms. Divinagracia. *Ngunit wala kahit anuman dito sa mga particular na programs na ito ang isinaad ninyo or inilagay ninyo sa* physical and financial plan of 2023. *Tama ba?*

Mr. Ortonio. Based on the documents that's presented, ma'am.

Ms. Divinagracia. Yes. *At tulad ng 2022* physical and financial plan, *itong 2023* physical and financial plan *ay* personal *ding inaprubahan ng* Vice President. *Tama ba?*

Mr. Ortonio. Yes, it has the signature of the Vice President.

Ms. Divinagracia. And again, *dahil walang countersignature sa katabi ng kaniyang pangalan, tama rin bang sabihin na hindi rin ito dumaan sa inyong opisina?*

Mr. Ortonio. No, it did not pass through my office.

Ms. Divinagracia. Okay. But generally, Mr. Ortonio, *dahil kayo nga iyong nangangasiwa or nag-exercise ng* general supervision over the SMO as well as the AFSSO generally, *walang* documents *ng* OVP *na hindi dumadaan sa* office *ninyo*. *Tama ba?*

Mr. Ortonio. Generally po, ma'am.

Ms. Divinagracia. Yes. Okay. Now *pumunta na tayo sa* disbursement vouchers. Mr. Ortonio, *dahil ikaw ay naging kawani na ng gobyerno* for almost two decades, you would know *na walang* pondo *ng publiko o pera ng bayan ang maaaring bayaran maliban kung suportado ng* disbursement voucher. *Tama ba?*

Mr. Ortonio. Yes, that's correct.

Ms. Divinagracia. *Ang voucher ang unang pinoproseso bago maaaring gumuhit ng anumang tseke* involving public funds. *Tama ba?*

Mr. Ortonio. That's correct.

Ms. Divinagracia. Now, Mr. Ortonio, I am showing you four disbursement vouchers which are prosecution's Exhibit P-I-10-A, P-I-10-B, P-I-10-C, P-I-10-D. You are familiar with these disbursement vouchers, correct? *Pamilyar ka sa mga disbursement vouchers na ito.*

Mr. Ortonio. Yes, I am.

Ms. Divinagracia. In fact, *nakapirma ka sa lahat ng disbursement vouchers na iyan. Tama ba?*

Mr. Ortonio. Yes, based on the authorization of our office order.

Ms. Divinagracia. *At ang inyong pangalan ay nakapatong sa at nakalimbag sa salitang agency—sorry agency head or authorized representative. Tama ba? Ang agency head na tinutukoy dito ay walang iba kundi si Vice President Duterte. Tama ba?*

Mr. Ortonio. Yes, that's correct.

Ms. Divinagracia. *Ang ibig sabihin nito, lumalagda ka sa bisa ng otoridad or on the strength of the authority that you were given by the Vice President. Tama ba?*

Mr. Ortonio. Yes, based on an office order.

Ms. Divinagracia. Yes. *At ultimately, ang otoridad na iyan na lumagda bilang kaniyang kinatawan or authorized representative ay nagmula mismo sa Bise Presidente. Tama ba?*

Mr. Ortonio. Yes.

Ms. Divinagracia. *Ngayon, ang inyong lagda ay nasa loob ng kahong "approved for payment."*

Mr. Ortonio. Yes.

Ms. Divinagracia. You will confirm *ang ibig sabihin nito na ang paglagda ninyo o sa paglagda ninyo, inaprubahan ninyo ang pagbayad o pag-withdraw ng confidential funds para sa 2022 at 2023. Tama ba?*

Mr. Ortonio. Yes, that's correct.

Ms. Divinagracia. *At dahil lumagda kayo bilang authorized representative ng Vice President, ang pag-apruba mong iyon ay ibinigay din sa bisa ng otoridad ng Vice President. Tama ba?*

Mr. Ortonio. Yes, based *po* sa isang office order.

Ms. Divinagracia. Okay. So in short, it is as if it was the Vice President herself who was giving the approval to release those funds referred to in those disbursement vouchers. *Tama ba?*

Mr. Ortonio. As authorized *po*.

Ms. Divinagracia. As authorized, yes. So, in short, Vice President *nga*. In short, Vice President approved the release of those—effectively the Vice President approved the release of the funds referred to in those disbursement vouchers. *Tama ba?*

Ms. Ferrer. Your Honor, please. Asked and answered already, as authorized.

Ms. Divinagracia. Your Honor, the reason I have to make a follow-up question is that the answer of this witness was not responsive. I was asking whether it meant effectively that the Vice President herself approved the release of the funds referred to in that disbursement voucher. But the answer of the respondent was that it was authorized by her. So, I want a categorical statement, Your Honor, from this witness.

The Presiding Officer. I'll allow it in the meantime, Counsel. Witness may answer.

Mr. Ortonio. Yes *po*, as authorized *po*. Yes.

Ms. Divinagracia. *Kung gayon, or in other words, kung wala ang pag-apruba ng vice president sa mga disbursement vouchers na ito, wala ring confidential funds sanang mailalabas. Tama ba?*

Mr. Ortonio. Sorry, again, can you repeat the question *po*?



Ms. Divinagracia. *Kung walang approval ng vice president sa mga disbursement vouchers na ito, wala ring confidential funds na mailalabas dahil ang funds or ang pondong pinapatukuyan dito ay ang confidential funds for 2022 and 2023, tama ba?*

Mr. Ortonio. If there is no approval *po*, there is no release of funds *po*.

Ms. Divinagracia. No release. Okay. Thank you.

The Presiding Officer. With the indulgence of counsel.

Mr. Ortonio, *iyong approved for payment ng pinirmahan ninyo* is in item or letter D.

Mr. Ortonio. Yes.

The Presiding Officer. Do you have the document in front of you?

Mr. Ortonio. Yes, sir.

The Presiding Officer. *Iyong letter A, certified expense cash advance necessary, lawful and incurred under my direct supervision is signed by the vice president?*

Mr. Ortonio. Yes, that's correct, Your Honor.

The Presiding Officer. What does that mean?

Mr. Ortonio. It means that it is being—

The Presiding Officer. *Anong ibig sabihin ng pagpirma ng vice president diyan sa box na iyan?*

Mr. Ortonio. The vice president certifies that the fund is made under her supervision.

The Presiding Officer. And *hindi ka pipirma—ano ba ito, sequence ba ito—A, B, C, D?*

Mr. Ortonio. Yes.

The Presiding Officer. *'Pag walang pirma si A, walang pirma si B, hindi muna pipirma si C, hindi ka pipirma?*

Mr. Ortonio. Yes, that's correct. It's in sequence *po*.

The Presiding Officer. So, *ikaw iyong huling-huling pumirma sa dokumentong ito ng disbursement voucher?*

Mr. Ortonio. Yes, Your Honor.

The Presiding Officer. Proceed, Counsel.

Ms. Divinagracia. Okay. Let us now go to the four checks. Okay. *Ang bawat isa sa apat na disbursement vouchers na iyong inaprubahan, which you identified earlier, ito ay nagresulta sa pagguhit ng katumbas na tseke ng LANDBANK. Tama ba?* It resulted in the drawing of four LANDBANK checks corresponding to the funds referred to in the disbursement vouchers. *Tama ba?*

Mr. Ortonio. Yes, that's correct.

Ms. Divinagracia. I am showing you the four checks, which are prosecution's Exhibit P-28-a, P-I-28-b, P-I-28-c, P-I-28-d. You are familiar with these checks, *tama ba?*

[Witness going over the documents.]

Mr. Ortonio. Yes, ma'am, I'm familiar with the checks being presented.

Ms. Divinagracia. In fact, *iyong pirma mo, iyong nakikita diyan sa mga tsekeng iyan, ikaw ay pumirma sa apat na tseke. Tama ba?*

Mr. Ortonio. Yes, as part of my duties as the assistant chief of staff.

Ms. Divinagracia. Okay. In fact, *mayroong office order na nagtatalaga sa iyo bilang signatory para sa mga tseke na may halagang more than ± 1 million. Tama ba?*

Mr. Ortonio. Yes, that's correct.



Ms. Divinagracia. *At ang order na iyon ay nanggaling din kay Vice President Sara Duterte. Tama ba?*

Mr. Ortonio. Yes, the office order was signed by the vice president.

Ms. Divinagracia. Okay. Signed by her, and thus approved by her. *Tama ba?*

Mr. Ortonio. Yes.

Ms. Divinagracia. *Ngayon, you will confirm na kasama ka sa pag-encash ng mga tsekeng ito. Tama ba?*

Mr. Ortonio. Yes, I can confirm.

Ms. Divinagracia. In fact, *ikaw lang ang kasama ni Ms. Gina Acosta nang i-encash mismo ito sa LANDBANK Shaw Boulevard branch. Tama ba?*

Mr. Ortonio. Yes, when she requested me to accompany her.

Ms. Divinagracia. Okay. So, you must be familiar with the LANDBANK Shaw Boulevard branch. *Tama ba?*

Mr. Ortonio. Yes.

Ms. Divinagracia. *At itong LANDBANK Shaw Boulevard branch ay matatagpuan sa Beacon Plaza, Shaw Boulevard, kanto ng Ideal Street, Mandaluyong City. Tama ba?*

Mr. Ortonio. Yes, that's correct.

Ms. Divinagracia. *Na ipinapakita ko sa iyo ang isang litrato— Your Honor, may we request the tech booth to flash the photo on the screen.*

The Presiding Officer. Granted.

Ms. Divinagracia. Mr. Ortonio, you've been to this branch several times, *tama ba?* The LANDBANK branch.

Mr. Ortonio. Yes.

Ms. Divinagracia. And you will confirm *na iyang litratong ipinapakita sa iyo sa screen, iyan ang LANDBANK, Shaw Boulevard branch.*

Mr. Ortonio. The LANDBANK, Shaw Boulevard branch, ma'am, is within that building, ma'am.

Ms. Divinagracia. Within that building. And you will confirm *na iyang sasakyan hindi maaaring pumasok beyond that area kung saan nakikita ang mga kotse, tama ba?*

Mr. Ortonio. Yes po, there's a parking lot in front of the compound.

Ms. Divinagracia. Yes. And from there, *kakailanganin na ninyong maglakad para makapunta sa LANDBANK branch mismo, tama ba?*

Mr. Ortonio. Yes.

Ms. Divinagracia. And just to clarify Mr. Ortonio, in all four instances of encashment, *sa apat na encashment ng apat na tseke, ikaw lamang ang kasama ni Ms. Gina Acosta na mag-encash at mag-withdraw ng pondo. Tama ba?*

Mr. Ortonio. Yes, that's correct.

Ms. Divinagracia. *At ito rin ay nagmumula sa instruction ng Vice President. Tama ba?*

Mr. Ortonio. *Iyong pag-accompany ko po kay Ms. Gina, it's based on the request of Ms. Gina po.*

Ms. Divinagracia. Okay. But you will confirm *na alam ito ng Vice President?*

Mr. Ortonio. When you say *alam ng Vice President, iyong pagsama ko po?*

Ms. Divinagracia. Yes.

Mr. Ortonio. That I cannot confirm, ma'am, if Ms. Gina was able to inform the Vice President.

Ms. Divinagracia. *Pero iyang withdrawal, that was also upon the instruction. Tama ba?*

Mr. Ortonio. When you say withdrawal—

Ms. Divinagracia. Withdrawal of the checks or the encashment itself?

Mr. Ortonio. I would assume, ma'am, *na...*

Ms. Divinagracia. Alam?

Mr. Ortonio. ...Ms. Gina has informed the vice president *iyong pag-encash niya*. But as to...

Ms. Divinagracia. Of course.

Mr. Ortonio. ... if I'm accompanying her...

Ms. Divinagracia. Yes.

Mr. Ortonio. ...I'm not sure, ma'am.

Ms. Divinagracia. Okay. But the withdrawal and the encashment (were) within the knowledge of the Vice President because in fact...

Ms. Ferrer. Asked and answered, Your Honor.

Ms. Divinagracia. This is a different question now, Your Honor.

The Presiding Officer. Finish your question, Counsel.

Ms. Divinagracia. In fact, Mr. Ortonio, you will confirm *na lahat ng nangyayari patungkol sa confidential funds, nire-report ito sa Bise Presidente. Tama ba?*

Mr. Ortonio. Again—

Ms. Ferrer. Vague, Your Honor. Objection.

Ms. Divinagracia. Why is that vague, Your Honor.

The Presiding Officer. Kindly reform and be more specific, Counsel. Are you just asking about the fact that Mr. Ortonio accompanied Gina on all four occasions *kung alam ng Bise iyon?*

Ms. Divinagracia. No, Your Honor, I'm referring to all matters pertaining to the confidential funds.

Ms. Ferrer. Vague, Your Honor.

Ms. Divinagracia. These are reported to the Vice President and— reported to and/or instructed by the Vice President.

The Presiding Officer. Then, that would be vague, Counsel. Kindly be more specific *kasi dinenay (deny) na niya kanina kung*—He said he doesn't know if the Vice President knew that he would accompany Gina. Kindly be more specific. You can ask the witness. He's intelligent enough. Ask him specific questions, Counsel.

Ms. Divinagracia. I will park that for now, Your Honor. I will—

The Presiding Officer. You can move on then.

Ms. Divinagracia. Okay. Now let's go to the audit observation memoranda, Mr. Ortonio. You will confirm that you are familiar with this audit observation memoranda. I'm referring to Prosecution's Exhibit P-I-12-b, P-I-12-a, P-I-12-e, P-I-12-i.

Mr. Ortonio. Yes, I'm familiar with the documents, ma'am.

The Presiding Officer. For the record, witness was confronted with the three documents.

Ms. Divinagracia. Mr. Ortonio, you are familiar with this audit observation memoranda *dahil ikaw ay binigyan ng kopya ng mga ito*. Correct?

Mr. Ortonio. Yes, that's correct. I received on behalf of the Vice President.

Ms. Divinagracia. You've received it on behalf of the Vice President. In fact, *lumagda ka diyan*

bilang patunay ng iyong pagtanggap sa mga audit observation memoranda na iyong tinitingnan ngayon. Tama ba?

Mr. Ortonio. Yes, that's correct.

Ms. Divinagracia. *At kayo rin ang inatasang sumagot ng audit observation memoranda na iyan ng Bise Presidente. Tama ba?*

Mr. Ortonio. Yes, I was given instructions to prepare the draft for the reply.

Ms. Divinagracia. Okay. Given instructions by the Vice President herself. *Tama ba?*

Mr. Ortonio. Yes.

Ms. Divinagracia. And is it also correct to say *na bago kayo tumugon sa mga audit observation memoranda na iyan, sinuri at pinag-aralan din ninyo ang mga liquidation report na kalakip dito?*

Mr. Ortonio. I consulted with the special disbursing officer and the security officer on the information that will be included in the reply.

Ms. Divinagracia. Okay. So, you also studied. You also checked, reviewed those liquidation reports that were attached to the—that were referred to in that audit observation memoranda. *Tama ba?*

Mr. Ortonio. Ma'am, I was only—I only got—I only consulted the special disbursing officer and the security officer on the information that will be included in the reply.

Ms. Divinagracia. So, you are saying *hindi mo nakita ang liquidation report? Umasa ka lamang sa kung anong ni-report sa inyo ng special disbursing officer at ng security officer?*

Mr. Ortonio. Yes, I got the information from them, ma'am.

Ms. Divinagracia. Okay. How about the certification and accomplishment reports? Of course, you saw these documents because, in fact, you would be referring later to these documents in your reply to the audit observation memoranda. *Tama ba?*

Mr. Ortonio. I was able to see the reports, ma'am, but I did not anymore go into details, ma'am, and then that was made as an attachment to the replies, ma'am.

Ms. Divinagracia. Okay, just a clarification. *Iyong sa liquidation report, you also see those—you also saw those liquidation reports. Tama ba?*

Mr. Ortonio. At the time, ma'am, I was able to see the liquidation reports, ma'am.

Ms. Divinagracia. Okay. Since you saw those liquidation reports, you would also—you must have also seen that in those liquidation reports, *personal din na nilagdaan ng Bise Presidente ang mga liquidation reports na iyon. Tama ba?*

Ms. Ferrer. Your Honor, the question is vague. Counsel should refer to the particular report, Your Honor.

The Presiding Officer. Kindly show the document, the liquidation reports you are referring to, Counsel, so that the witness may be able to look at it.

Ms. Divinagracia. Your Honor, I am referring to—

The Presiding Officer. The four liquidation reports, I presume.

Ms. Divinagracia. Yes, Your Honor. I am referring to prosecution's Exhibit P-I-9-a to P-I-9-d.

Mr. Ortonio. At that time, ma'am, I was able to just see it, ma'am, physically, but I was not able to review it, ma'am.

Ms. Divinagracia. Okay. But you will confirm that those liquidation reports, all were signed by the Vice President, correct?

Mr. Ortonio. Yes, based on the document, ma'am, it has the signature of the Vice President.

Ms. Divinagracia. Let's go to the certifications attached to the liquidation reports, which are prosecution's Exhibit P-I-6-a to P-I-6-d again. Can you please kindly refer to the certification?

In the meantime, Your Honor, I will just park that question for now and go to the next question.

So let's go to the accomplishment reports, Mr. Ortoño. Since you mentioned you also see these documents, you will also confirm *na itong mga* accomplishment reports *na ito, lahat inaprubahan din ng Bise Presidente*? I'm referring to Exhibits P-I-7-a-1 to P-I-7-d.

The Presiding Officer. Kindly show the witness, Counsel. Assisting Counsel may approach.

Mr. Ortonio. I was able to see, ma'am, but I did not scrutinize anymore, ma'am.

Ms. Divinagracia. You did not scrutinize. But you will confirm that the signature of the Vice President appears in those documents since, earlier, you admitted *na pamilyar ka sa* signature ng Vice President?

Mr. Ortonio. Yes.

Ms. Divinagracia. *Kanina nabanggit mo*, if we can just backtrack a bit, *kanina nabanggit mo na nakipag-coordinate ka sa* security officer *at sa* special disbursing officer.

Mr. Ortonio. Yes.

Ms. Divinagracia. *Tama rin ba na sabihin na nag-coordinate ka* with them upon the instructions of the Vice President? *Tama ba?*

Mr. Ortonio. Yes, there was an instruction to coordinate so that we can properly reply to the AOM.

Ms. Divinagracia. Okay. Let us go back to Liquidation Report No. 2022-12-152, which is prosecution's Exhibit P-I-9-a. And you will confirm that, based on this document, *ang buong* 125 million *na* confidential funds *ay lubusang naubos pagsapit ng* December 31, 2022, *tama ba?*

Mr. Ortonio. Yes, based on the document, ma'am, based on the liquidation report.

Ms. Divinagracia. And since *in-encash ninyo ang mga tseke* or *ang tseke* pertaining to this fund, confidential fund, *noon lamang* December 20, 2022, *tama bang sabihin na iyong pondo ay na-disburse sa loob lamang ng* 11 days? *Tama ba?*

Mr. Ortonio. That, ma'am, I cannot give.

Ms. Divinagracia. Based on this document.

Mr. Ortonio. If you base on the document, there's a liquidation of the cash advance for the period of December 21 to 31.

Ms. Divinagracia. And that would be 10 days?

Mr. Ortonio. If you base it here, ma'am, that's December 21 to 31.

Ms. Divinagracia. Yes. Okay. So, a good 10 days?

Ms. Ferrer. Your Honor, please, the document speaks for itself.

Ms. Divinagracia. Your Honor, I believe Counsel is referring to the original documents rule. Unfortunately for her, Your Honor, that's an improper invocation of the original documents rule. The original documents rule does not bar questions relating to the document. What it simply prohibits is the substitution of the testimony of the witness for the document without producing the original of said document. Your Honor, the original of this document was presented to this Honorable Court as early as the pre-trial conference of this case, Your Honor.

The Presiding Officer. We will allow it, subject to the parameters that you cannot change what's contained in the document...

Ms. Ferrer. Your Honor.

The Presiding Officer. ...but you may be questioned with respect to his understanding and appreciation of the document.

Yes, Attorney Kristine?

Ms. Ferrer. Your Honor, quick reply. Because the witness was asked to interpret the document, Your Honor, and the contents of the document.

Ms. Divinagracia. I wasn't asking, Your Honor. It's by simple arithmetic, Your Honor.

Ms. Ferrer. No, Your Honor. She was referring to the contents of the document.

Ms. Divinagracia. With all due respect, Your Honor, if I can just make a brief reply to the manifestation, Your Honor.

The Presiding Officer. Yes, Counsel, briefly.

Ms. Divinagracia. Yes. I wasn't asking, Your Honor, this witness to interpret the document. By simple arithmetic, Your Honor, this witness can easily come up with a number of days within which—and just by looking at the document, this witness can easily come up and say the number of days within which the 125 million was spent and disbursed, Your Honor.

The Presiding Officer. As long as the document is not going to be changed, I will allow it.

Witness, if you know, if you know. Again, you are well-educated to be able to answer the simple questions, if you know.

Ms. Divinagracia. Again, Mr. Ortonio, you will confirm that the funds referred to in that liquidation document was fully disbursed within a good 10 days because you said the disbursement covers the period December 21 to December 31, 2022. *Tama ba?*

Mr. Ortonio. Based on computation, ma'am, it's actually 11 days.

Ms. Divinagracia. So, 11 days.

Mr. Ortonio. Based on the computation and based on the document, ma'am, it's—

Ms. Divinagracia. Eleven days.

Mr. Ortonio. It will reflect 11 days.

Ms. Divinagracia. Correct. *Ito ay sa kabila ng fact na sa ilalim ng PFP, ang pondo ay para sa buong ikaapat na quarter ng 2022, tama ba?*

Mr. Ortonio. It's for the fourth quarter of 2022.

Ms. Divinagracia. Of 2022. And that fourth quarter of 2022 means October, November—the period October, November, December of 2022, *tama ba?*

Mr. Ortonio. For fourth quarter, ma'am, that covers for October, November, and December.

Ms. Divinagracia. October, November, and December 2022, yes?

Mr. Ortonio. Yes.

Ms. Divinagracia. So it means *dahil* it covers that period October, November, December 2022, *iyong pondo ay* spread out supposedly *para sa* activities *na itinala noong* October, November, and December 2022, *tama ba?*

Ms. Ferrer. Your Honor, please.

The Presiding Officer. Counsel?

Ms. Ferrer. That is an assumption, Your Honor. That's a conclusion of fact. The witness did not testify that it should be spread throughout the quarter, Your Honor. And speculative also.

Ms. Divinagracia. May I just, Your Honor, make a counter-manifestation and reply to the comment, Your Honor?

The Presiding Officer. Yes, Counsel, what's your reply?

Ms. Divinagracia. I'm not assuming anything, Your Honor. Precisely, I am asking this witness to confirm. There's no assumption on that, Your Honor.

The Presiding Officer. Counsel, but it has no basis. Counsel for Respondent is correct. The witness did not say, neither was it contained in any letter of the Office of the Vice President that it is for the entire quarter. Reform, Counsel. You can get to what you want still. Kindly reform.

Ms. Divinagracia. With all due respect, Your Honor, this witness has just admitted earlier that the funds was for the fourth quarter of 2022. He even mentioned that it is for the period October, November, and December 2022.

Ms. Ferrer. Your Honor, I believe the Court has already ruled on the matter, Your Honor.

The Presiding Officer. Kindly reform, Counsel. You can get to what you want just as easily, Counsel.

Ms. Divinagracia. Okay. Earlier, Mr. Ortonio, you mentioned *na iyong* programs *na nakalagay*, both in the 2022 and 2023 physical and financial plans, which are the good governance programs and the socio-economic programs, these are just umbrella programs. *At kalakip*—or *sa ilalim nito, mayroong mga* individual plans, programs, and activities *ang* OVP. *Tama ba?*

Mr. Ortonio. Yes.

Ms. Divinagracia. And these plans, programs, and activities are spread out through the year, *tama ba?*

Mr. Ortonio. If you base it on the PFP, there is an allocation—

Ms. Divinagracia. Sorry, I am not referring to the PFP, just generally. *Itong* socio-economic program delivery and good governance program, *ito ay naka*-spread out through the entire year, *tama ba?*

Mr. Ortonio. Yes, for implementation ...

Ms. Divinagracia. For implementation.

Mr. Ortonio. ... throughout the year.

Ms. Divinagracia. Okay. So *mayroong programa na naka*-schedule for October, *mayroon ding* for November, *mayroon ding* for December, *tama ba?*

Mr. Ortonio. Yes, there are schedules for the rollout of the activities.

Ms. Divinagracia. Okay, *tama*. *At dahil iyong* PFP or physical financial plans, *ang sinasabi* lamang *ay* socio-economic development program *at* good governance program, effectively, *ang ibig sabihin nito, iyong pondong nakatalaga doon sa* relevant quarter *na iyon ay nakatalaga para sa* relevant programs, plans, and activities for each quarter.

Ms. Ferrer. Your Honor, please. Can the Counsel show what particular PFP she is referring to, Your Honor?

Ms. Divinagracia. Your Honor, may we request our assisting counsel to furnish ...

The Presiding Officer. You may do so.

Ms. Divinagracia. ... the witness with both PFPs, Your Honor, for the 2022 and 2023 PFP? So, just for clarity, let's just go to...

The Presiding Officer. The 2022...

Ms. Divinagracia. Let's just go to the PFP for 2022.

The Presiding Officer. Yes.

Ms. Divinagracia. Okay. *May nakalagay diyan sa* PAPs— "Good Governance Program," *tama ba?*

Mr. Ortonio. Yes, that's correct.

Ms. Divinagracia. *Ang sinasabi mo kanina, iyang* Good Governance Program *na iyan, hindi iyan isang partikular na programa lamang. Mayroong mga* flagship programs under that good governance programs, *tama ba?*

Mr. Ortonio. Yes, that's correct.

Ms. Divinagracia. And for every month for the remaining quarter of 2022—meaning October, November, and December— *mayroon diyang mga nakatalang* activities, plans, and programs falling under the Good Governance Programs, *tama ba?*

Mr. Ortonio. Yes, under the Good Governance Program.

Ms. Divinagracia. Yes, under the good governance programs. *At nakalagay din diyan, na iyong halagang P125 million ay para sa quarter four of 2022, meaning, that is the period October, November, and December 2022, tama ba?*

Mr. Ortonio. For the subject *na* confidential funds?

Ms. Divinagracia. Yes, for the confidential funds.

Mr. Ortonio. Yes.

Ms. Divinagracia. Yes. *Tama rin bang sabihin na* for—well, presumably, *iyong* October, November, and December, *mayroong mga* activities for which the confidential funds would answer to...

Ms. Ferrer. Your Honor, please.

Ms. Divinagracia. ...or would answer for, *tama ba?*

Ms. Ferrer. Your Honor, please.

The Presiding Officer. Attorney Kristine.

Ms. Ferrer. Your Honor, she's asking for an opinion. We note that the witness is not even the one who prepared this PFP, Your Honor. And counsel also stated, "presumably," Your Honor, so that's asking for an opinion.

Ms. Divinagracia. Wait. If I may just—

The Presiding Officer. With the indulgence of counsels, so that we can get somewhere before we break for lunch.

Mr. Ortonio. *iyong* PAP *po ninyo at iyong* request *ninyo sa* confidential funds *sa huling* quarter *ng* 2022, *ang plano ninyo sana para sa buong huling* quarter *ng* 2022?

Mr. Ortonio. Your Honor, if you will base—number one *po*, because I did not participate in the preparation of the PFP, so in terms of the details of the implementation for the confidential funds, I may not be able to properly answer.

The Presiding Officer. *Hindi pa po natin pinag-uusapan ang implementasyon. Ang pinag-uusapan po natin, noong nag-submit kayo ng plano para manghingi ng confidential fund at ikaw iyong pumirma noon, para sa last quarter. Kaya lang, as we all know, late na na-release iyong pera, hindi ba?*

Mr. Ortonio. Yes, based on the PFPs, Your Honor, as indicated here—it's for October to December.

The Presiding Officer. Yes, *para sa last quarter nga ng* 2022.

Mr. Ortonio. Twenty-two.

The Presiding Officer. *Kailan na-release iyong pera? Kailan mo winidraw* (withdraw)? December 20, November—December 21?

Mr. Ortonio. The SARO was released December 30, and then the withdrawal was made December 20.

The Presiding Officer. December 20.

Mr. Ortonio. Yes.

The Presiding Officer. *Tapos in-implement ninyo hanggang* December 31?

Mr. Ortonio. Based on the documents, Your Honor, the activities were implemented until December 21.

The Presiding Officer. Thirty-one.

Mr. Ortonio. Thirty-one—sorry—until December 31.

The Presiding Officer. Now, I'll go a step further, Counsel. *Bakit ba kailangang madaliin iyan? Hindi ba ang budget good for two years, as you very well know, given your position in*

the Office of the Vice President? The budget— the GAA, is good for two years anyway. So, why was there a need to implement it within the year?

Mr. Ortonio. Because, Your Honor, the request was made for the specific year, which is 2022.

The Presiding Officer. *At dahil nga iyong plano ninyo* is for the last quarter of 2022?

Mr. Ortonio. Yes, Your Honor.

The Presiding Officer. Your witness, Counsel.

Ms. Divinagracia. Okay. Just a follow-through, Your Honor...

The Presiding Officer. Of course, Counsel.

Ms. Divinagracia. ...to the question made by the Presiding Officer.

So, just to clarify, *dahil nakasaad diyan na iyang* confidential funds of P125 million for 2022 is for the last quarter, meaning, for October, November, and December, *nakalaan iyan para sa* activities under the Good Governance Programs ng OVP for October, November, and December, *tama ba?*

Mr. Ortonio. Yes, based on the PFP.

Ms. Divinagracia. Based on the document. Okay.

At bilang supervising authority over the financial services ng OVP, *alam din ninyo na ang* notice of cash allocation *na hindi nagamit pagsapit ng katapusan ng taon ay nagla-lapse,* *tama ba?*

Mr. Ortonio. Yes.

Ms. Divinagracia. *Ibig sabihin nito, ang anumang pondo na hindi nagamit at hindi nagastos o anumang balanse ng cash advance sa katapusan ng taon ay dapat isauli sa Treasury, tama ba?*

Mr. Ortonio. That is correct.

Ms. Divinagracia. *Kung gayon, kung hindi na-report o nagastos iyong P125 million pagsapit ng December 31, 2022, bahagi o buo nito ay babalik sana sa Treasury, tama ba?*

Mr. Ortonio. Yes.

Ms. Divinagracia. *Noong hearing sa CGGPA noong November 25, 2024, inamin mo na ikaw ay pinagkakatiwalaan ng Bise Presidente sa mga sensitive and confidential information, tama ba? Naalala mo?*

Mr. Ortonio. I cannot specifically remember if I said those words po in verbatim.

Ms. Divinagracia. Okay. We are furnishing you a copy of the transcript of stenographic notes of the CGGPA hearing dated November 25, 2024, specifically page 208, which is also flashed on the screen. *Sinabi mo,* and I quote, "*sa mga sensitibong bagay,*" end of quote.

The Presiding Officer. What is your question, Counsel?

Ms. Divinagracia. Do you confirm that, Mr. Ortonio?

Mr. Ortonio. I think the context for this, Ma'am, is because the previous question was—

Ms. Divinagracia. Sorry. Excuse me, Mr. Ortonio, I need to cut you because the question is not—

Ms. Ferrer. Witness is answering.

The Presiding Officer. That's why I was asking, what was your question, because I also did not get the question. Kindly repeat your question, Counsel.

Ms. Divinagracia. Yes, Your Honor. I was asking the witness whether or not he admitted during that hearing that the Vice President would entrust to him or would share with him "*mga sensitibong bagay.*"

Mr. Ortonio. Yes, ma'am, but that is in the context of the previous question that my position is of trust and confidence.

Ms. Divinagracia. Yes. Yes, correct.

Mr. Ortonio. Although I said *po na* on sensitive matters, of course, it is never absolute that all sensitive matters can be disclosed.

Ms. Divinagracia. Okay, we understand that, Mr. Ortonio. Okay, *noong* December—between December 20 and December 31, *mayroon ba kayong narinig na* threat of cataclysmic proportion? *Ibig sabihin, mayroon ba kayong narinig na banta na masyadong mapaminsala na kailangang sugpuin sa loob lamang ng 11 days noong* December 20 to December 31, 2022?

Ms. Ferrer. Your Honor, please.

The Presiding Officer. Counsel?

Ms. Ferrer. Question is vague, Your Honor, and no basis also.

Ms. Divinagracia. How can that be vague, Your Honor?

The Presiding Officer. I presume it's threat against the Vice President. *May alam po ba kayo na—among salita uli iyong ginamit mo, Attorney Mae? Mapaminsala?*

Ms. Divinagracia. Threat of cataclysmic proportion or *banta na masyadong mapaminsala*.

The Presiding Officer. *Bantang mapaminsala. Kakaibang banta laban sa ikalawang pangulo noong mga panahong iyon na malapit sa petsang* December 21 to 31? If you know of any?

Mr. Ortonio. Your Honor, I personally don't know of any information.

Ms. Divinagracia. Okay. By the way, just again to backtrack a bit, Mr. Ortonio. When you requested confidential funds in 2022, *kung alam ninyo, iyong OVP po ba mayroon nang mga natukoy na banta laban sa Vice President ng panahong iyon?*

Mr. Ortonio. Ma'am, I cannot personally answer. Maybe that's a question that can be answered by the security group.

Ms. Divinagracia. But as far as you are concerned, are you aware of any identified threats against the Vice President or the office during that time?

Ms. Ferrer. Your Honor—

The Presiding Officer. If he knows. If he knows, Counsel. Attorney Kristine, if he knows. If he does not, he may answer accordingly.

Mr. Ortonio. I personally do not know of any.

Ms. Divinagracia. You personally do not know. And before you requested confidential funds from the DBM, would you know if the Office of the Vice President coordinated with any law enforcement agency for possible threats against the Vice President or the office? Would you know?

Mr. Ortonio. In relation to possible threats to the Vice President, I would not have any information.

Ms. Divinagracia. You do not have any information. *Ibig mo ba sabihin, itong mga threats na ito, hindi ito kasama sa mga sinu-supervise mo na internal affairs ng Office of the Vice President dahil sinabi mo, ikaw ang nagsu-supervise ng dalawang opisina, that in turn, oversees or monitors matters relating to the OVP?*

Ms. Ferrer. Your Honor, please.

The Presiding Officer. Attorney Kristine?

Ms. Ferrer. Asked and answered, and complex, Your Honor. And also, argumentative.

The Presiding Officer. It's a bit compound, Counsel. Reform a bit, Counsel. The question is long as well. The witness might not be able to respond adequately. Break it up a bit, Counsel.

Ms. Divinagracia. So, Mr. Ortonio, you mentioned earlier that you're not aware of any coordination efforts with law enforcement agency at the time that you requested funds from the DBM, *tama ba?*

Mr. Ortonio. Yes po.

Ms. Ferrer. Your Honor, please. The question is misleading. The witness said no information as to the supposed threats against the Vice President.

The Presiding Officer. Witness has already answered, Counsel. Proceed, Attorney Mae.

Ms. Divinagracia. Okay. Thank you, Your Honor.

So, *nasabi mo, wala kang alam na* coordination efforts? *Ang sinasabi mo pa, itong mga* coordination efforts *na ito, hindi ito sakop ng* overseeing and supervising functions *mo as* assistant secretary and assistant chief of staff of the OVP?

Mr. Ortonio. In relation to security matters, Ma'am, no, that is not part of my duties as the assistant chief of staff.

Ms. Divinagracia. Okay. Thank you.

Now, *pumunta na tayo sa* accomplishment reports, *na sinabi mo kanina ay nakita mo,* in connection with your preparation of the responses to the audit observation memorandum, *tama ba?*

Mr. Ortonio. Yes.

Ms. Divinagracia. Yes, you mentioned that.

I am referring to Prosecution's Exhibits P-I-7-a-1 to P-I-7-d. These are the accomplishment reports that you admitted seeing.

Mr. Ortonio. Yes, I was able to see them *po*.

Ms. Divinagracia. Okay. Let's first go to the first three accomplishment reports, which are P-I-7-a-1 to P-I-7-c. You confirm that? Do you see that before you?

Mr. Ortonio. Yes.

Ms. Divinagracia. Okay. *Itong tatlong* reports *na ito, ang bawat* report *ay naglilista ng* *pare-parehong anim na* *kategorya sa* *pare-parehong* pagkakakasunod-sunod, *tama ba?*

Mr. Ortonio. Yes.

Ms. Divinagracia. You have Purchase of Information, Payment of Reward, Rental and Maintenance of Safe Houses, Purchase of Supplies, Medical and Food Aid, and Incentives or Traveling, *tama ba?* That order.

Mr. Ortonio. Yes.

Ms. Divinagracia. All three accomplishment reports.

Mr. Ortonio. Yes.

Ms. Divinagracia. *Sa bawat* quarter, *ang mga halagang* *iyon ay eksaktong* *nagkakabuo ng* P125 million, *tama ba?*

Mr. Ortonio. Based on the document, Ma'am, presented, yes.

Ms. Divinagracia. And you will also confirm *na sa bawat isa sa mga* quarter *na iton, walang* *halagang naisauli, tama ba?*

Mr. Ortonio. Based on the liquidation report, Ma'am, yes.

Ms. Divinagracia. Yes. Okay. Now *sa* 2022 report, *ang* safe house rental and maintenance, *ang halaga ay* P16 million, *tama ba?*

Mr. Ortonio. Yes, based on the report.

Ms. Divinagracia. Document. *Ganoon din sa* first quarter *ng* 2023, P16 million *din ang* *halaga* *ng* safe house rental and maintenance, *tama ba?*

Mr. Ortonio. Yes, based on the document, Ma'am.

Ms. Divinagracia. *At ganoon din sa second quarter ng 2023, P16 million para sa safehouse rental and maintenance— eksaktong P16 million?*

Mr. Ortonio. Yes, Ma'am.

Ms. Divinagracia. And you will also confirm, as you've already confirmed earlier, *na ang 2022 report, ang saklaw na period nito ay 11 days, tama ba?*

Mr. Ortonio. From December 21 to 31.

Ms. Divinagracia. *Samantalang ang sakop naman na period ng first quarter report ay February 6 to March 29, 2023. So that's 52 days, tama ba?*

Mr. Ortonio. Based on the document, Ma'am.

Ms. Divinagracia. And the second quarter *naman, ang saklaw na period nito ay April 25 to June 30 or 67 days, tama ba?*

Mr. Ortonio. Yes, based on the document.

Ms. Divinagracia. *Gayon pa man, magkakapareho ang halaga ng safe house rental at maintenance sa tatlong reports na iyon, tama ba, based on the report?*

Mr. Ortonio. Yes, based on the report.

Ms. Divinagracia. Okay. So, in short, P16 million *para sa safe house, para sa labing-isang araw, para sa 52 days, at para sa 67 days— pare-parehong P16 million ang halaga?*

Mr. Ortonio. Based on the document, Ma'am.

Ms. Divinagracia. Yes. The same is true, Mr. Ortonio, for incentives and traveling. *Iyang line item na iyan na makikita sa accomplishment report, tama ba?* It's the same P10 million for all those three quarters?

Mr. Ortonio. Yes, based on the document, Ma'am.

Ms. Divinagracia. And you will also confirm that based on those documents, for the 2022 report, it covers or it claimed to have covered 132 areas in 11 days, *tama ba?*

Mr. Ortonio. Sorry. Again, ma'am, for 20...?

Ms. Divinagracia. 2022, the first report.

Mr. Ortonio. Yes, Ma'am.

Ms. Divinagracia. *May nakalagay na area, it's...*

Mr. Ortonio. One hundred thirty-two.

Ms. Divinagracia. ...132 areas for 11 days. *Sa first quarter naman of 2023, it claims 127 areas in 52 days.*

Mr. Ortonio. Yes, based on the report, Ma'am.

Ms. Divinagracia. And for the second quarter, it's 111 areas in 67 days, *tama ba?*

Mr. Ortonio. Yes, based on the report, Ma'am.

Ms. Divinagracia. Based on the report. And for the third quarter, it's 122 areas in 79 days, correct?

Mr. Ortonio. Yes, that's correct, Ma'am.

Ms. Divinagracia. So, *ibig sabihin nito, iyong shortest period pa, ang pinakamaikling panahon, ang nagbunga ng pinakamaraming lugar, which is 132 days, tama ba?* Based on the document.

Mr. Ortonio. Based on the document, Ma'am, yes.

Ms. Divinagracia. Yes. *Pero iyong halaga ay hindi nagbago.* It remained P10 million, *tama ba?* Based on the document.

Ms. Ferrer. Your Honor, please.

The Presiding Officer. Yes, Counsel.

Ms. Ferrer. Argumentative, Your Honor. "*Ang mahalaga hindi nagbago na P10 million.*"

Ms. Divinagracia. Your Honor, the counsel may have misheard what I said. I was referring to *halaga*, Your Honor. And in any event, Your Honor, it's not argumentative. I am eliciting a matter of fact from this witness.

The Presiding Officer. Witness may answer, Counsel.

We're a few minutes before lunch, Atty. Kristine.

Mr. Ortonio. Based on the document presented, Ma'am, that's how it says.

Ms. Divinagracia. The amount did not change. It remained...

Mr. Ortonio. Yes.

Ms. Divinagracia. ...P10 million regardless of the number of areas covered?

Mr. Ortonio. Yes, based on the document.

Ms. Divinagracia. You will also confirm from those documents that for the first three reports, meaning the 2022 report and the reports for the first two quarters of 2023, *may* line item or provision for medical and food aid, correct?

Mr. Ortonio. Yes.

Ms. Divinagracia. ...*na nagkakahalaga ng P40 million, P42 million, and P40 million, respectively, tama ba?*

Mr. Ortonio. Yes.

Ms. Divinagracia. *Itong mga accomplishment reports, you will agree and you will admit na ito ay isinumite sa COA bago pa nakatanggap ang OVP ng Audit Observation Memorandum, tama ba?*

Mr. Ortonio. If based on the submission dates, Ma'am, yes.

Ms. Divinagracia. Yes. And you will also confirm that the OVP received the first memorandum, which is Audit Observation Memorandum No. 2023-213, only on October 4, 2023, *tama ba?*

Mr. Ortonio. Yes.

Ms. Divinagracia. Okay. And five days later, *kayo naman, ang OVP, nag-submit ng last report for the third quarter of 2023, which is Prosecution's Exhibit P-I-7-d, which is already before you, Mr. Ortonio, tama ba?*

Ms. Divinagracia. ... And five days later, *kayo naman ng OVP nag-submit ng last report for the third quarter of 2023 which is prosecution's Exhibit P-I-7-d, which is already before you, Mr. Ortonio. Tama ba?*

Mr. Ortonio. The third quarter accomplishment report?

Ms. Divinagracia. Yes. You submitted that on October 9, 2023.

Mr. Ortonio. October 9, based on the submitted report.

Ms. Divinagracia. Okay. So that's five days after you received the first Audit Observation Memoranda from the COA, *tama?*

Mr. Ortonio. Yes.

Ms. Divinagracia. And if you will check and if you will confirm, *diyan sa last na accomplishment report na iyan, wala na iyong line item for medical and food aid. Tama ba?*

Mr. Ortonio. Yes.

Ms. Divinagracia. *Pero ang kabuohan pa rin ng fund ay P125 million. Iyong kabuohan ng confidential fund na nagastos ay ganoon pa rin, P125 million.*

Mr. Ortonio. Yes, based on the document, ma'am.

Ms. Divinagracia. *Iyong dating 40 million, 42 million, and 40 million na amount, hinati-hati ito sa iba't ibang line item. Tama ba? Mayroong inilagay sa provision ng rewards. Tama ba?*

Ms. Ferrer. Your Honor, please.

Mr. Ortonio. Ma'am—

The Presiding Officer. Counsel?

Ms. Ferrer. Witness is incompetent to testify on that because he did not prepare the accomplishment report.

The Presiding Officer. If he knows, Counsel, based on the documents. If he knows.

Kung alam ninyo po, Mr. Ortonio, maaari ninyo pong sagutin. Kung hindi ninyo alam, sabihin ninyong hindi ninyo alam.

Mr. Ortonio. Thank you, Your Honor.

I would not know, ma'am, if *hinati-hati*, ma'am, because I did not prepare the document.

Ms. Divinagracia. But you would confirm *na kahit na wala iyong line item na iyon na* supposedly 40 million, 42 million, and 40 million, the amount stayed P125 million. Correct?

Ms. Ferrer. Your Honor, please.

The Presiding Officer. Same ruling, same objection.

Ms. Ferrer. Asked and answered already.

The Presiding Officer. Same ruling, same objection.

Please continue, Counsel. Move on.

And by the way, Attorney Mae, choose the best time when you want to pause *para hindi ka bitin sa direct examination mo*. Not to exceed 12:15 so that we can all go on a lunch break. But you choose the best time when you want to pause. Until 12:15, Counsel, or before that time.

Ms. Divinagracia. Yes, Your Honor.

The Presiding Officer. Please proceed, Counsel.

Ms. Divinagracia. So, there was a question left hanging, Your Honor. I was asking the witness—

The Presiding Officer. Yes.

Ms. Divinagracia. Since *nawala iyong line item na medical and food aid, subalit naging pareho pa rin ang amount, ang total amount, ang total halaga*, which is 125 million, *iyong* corresponding amount of 40, 42 million, 40 million for the medical food aid, that must have been assigned to other line items. Correct?

Mr. Ortonio. I cannot confirm on that, ma'am.

The Presiding Officer. But you do confirm the total is still the same?

Mr. Ortonio. I can confirm that based on the document, the amount—the total amount is still the same. But as to the—

The Presiding Officer. And that they're all the same, Mr. Ortonio.

Mr. Ortonio. Yes.

The Presiding Officer. For the last quarter of 2022 and the first three quarters of 2023, they're all 1-2-5.

Mr. Ortonio. Yes. That's correct, Your Honor.

The Presiding Officer. Move on, Counsel.



Ms. Divinagracia. And you will also confirm, if you could—if you would compare those four accomplishment reports, for the first time in the accomplishment report for the third quarter of 2023, *lumabas ang—sa unang pagkakataon, ang bawat item ay inilarawan bilang kaugnayan sa areas of engagement of the Office of the Vice President. Tama ba?*

Mr. Ortonio. Sorry again, ma'am.

Ms. Divinagracia. *Iyong phrase na “areas of engagement of the Office of the Vice President,” makikita mo lamang iyan, for the first time, in the third accomplishment report. Tama ba? Sorry, fourth accomplishment report, referring to the third quarter of 2023.*

Mr. Ortonio. Areas of engagement—

Ms. Divinagracia. Of the Office of the Vice President.

Mr. Ortonio. Sorry, ma'am. Okay, for item D. Yes, based on the document, ma'am.

Ms. Divinagracia. Your Honor, we can rest for now, Your Honor, and have our lunch break.

Thereafter, the Presiding Officer stated that the direct examination of the witness would be conducted after the break.

SUSPENSION OF TRIAL

With the permission of the Body, the trial was suspended.

It was 12:06 p.m.

RESUMPTION OF TRIAL

At 12:49 p.m., the trial was resumed.

REMINDER OF THE PRESIDING OFFICER

Presiding Officer Escudero reminded Mr. Ortonio that he would testify under the same oath administered earlier that day.

MANIFESTATION OF THE COUNSEL FOR THE RESPONDENT

Attorney Ferrer noted that the witness had been asked to interpret documents, despite having no involvement in their drafting or preparation. She clarified that the contents of the documents were not disputed, as Counsel for the Respondent had already stipulated to the amounts and signatures. She likewise proposed that amounts, number of days, and similar details be stipulated to, if the line of questioning by the Counsel for the Panel of Prosecutor's would concern the, those matters..

REMARK OF THE PRESIDING OFFICER

Presiding Officer Escudero stated that the Counsel for the Panel of Prosecutors sought to establish that the explanations for expenses involving confidential funds were allegedly “sham,” having been prepared before the funds were requested, involving substantially identical amounts and accounting for the entirety of the funds. He noted that it was unlikely for Attorney Ferrer to be willing to stipulate on the aforesaid matters.

Attorney Ferrer confirmed that she would not stipulate to those allegations. She emphasized that while the witness had already testified to having no participation in the execution of documents such as the Physical and Financial Plan (PFP) and Accomplishment Reports, he was still being asked regarding said documents, and to provide his interpretation of them.



MANIFESTATION OF THE PRESIDING OFFICER

Presiding Officer Escudero observed that the senator-judges generally understood the point being raised by the Counsel for the Panel of Prosecutors regarding the PFP and Liquidation Report. He noted that, except for the disbursement vouchers signed by witness Mr. Ortonio, the latter testified that while he was aware of the existence of other documents, he had no involvement in the preparation,. He further acknowledged that Attorney Divinagracia asked the witness to identify or read portions of the documents, even as the documents should speak for themselves.

He then directed Attorney Divinagracia to proceed to the remaining purposes for the offer of evidence, noting that approximately two or three matters had yet to be established through the witness. He stated that the senator-judges already understood the intended point concerning the alleged similarities in the liquidation reports, including the amounts, totals, and variations, as well as the preparation of the plans before the requests were made. He also noted that the Court had already taken notice of the 11-day period based on the testimony of previous witnesses. Accordingly, he instructed Attorney Divinagracia to abbreviate the discussion of the aforementioned items, and proceed to the other purposes sought to be established through Mr. Ortonio.

DIRECT EXAMINATION OF THE WITNESS

(Continuation)

Ms. Divinagracia. Okay. Thank you, Your Honor.

Good afternoon again, Mr. Ortonio.

Mr. Ortonio. Good afternoon, Ma'am.

Ms. Divinagracia. Earlier, you admitted that in 2022, your request for confidential funds was for P250 million, correct?

Mr. Ortonio. Yes, for P250 million.

Ms. Divinagracia. But eventually, the amount given was only P125 million, correct?

Mr. Ortonio. Yes.

Ms. Divinagracia. And yet, in the 2022 Accomplishment Report, what is reported is that there was still 100% implementation of activities. *Tama ho ba?*

Mr. Ortonio. If we will be—

Ms. Ferrer. Your Honor, please. Your Honor, please.

The Presiding Officer. I'm sorry, Counsel.

Ms. Ferrer. Can the witness be shown the document, Your Honor?

The Presiding Officer. Yes, Assisting Counsels have been given continuing authority to so approach and show the witness the documents in order to confront the witness with the document.

Mr. Ortonio. Sorry again, Ma'am, the question, Ma'am?

Ms. Divinagracia. You reported in that Accomplishment Report for 2022, *inulat ninyo na 100% pa rin ang implementation ng projects. Tama ba?*

Mr. Ortonio. Based on the utilization that was submitted and prepared, Ma'am, it indicated 100% implementation.

Ms. Divinagracia. Okay. *Ibig sabihin, Mr. Ortonio, tama ba na there was full implementation of the project gamit ang kalahati ng budget na inyong hiningi. Tama ba?*

Mr. Ortonio. Sorry again, Ma'am?

Ms. Divinagracia. There was still full implementation of the activities for half the budget that you requested?

Mr. Ortonio. Ma'am, if based on the document, Ma'am, 100% for the 125, Ma'am.

Ms. Divinagracia. Okay. *Sige. Punta na tayo ngayon, Mr. Ortonio, sa replies to the AOM. Ngayon sumagot ka, ikaw mismo sumagot sa AOM No. 2023-211 dated September 14, 2023. Tama ba?*

Mr. Ortonio. September 14, 2023 and October 3, 2023, *tama po.*

Ms. Divinagracia. *Pero, you will confirm na iyong mga AOMs na iyon addressed kay Respondent Vice President, attention kay Ms. Acosta at Ms. Villadelrey. Tama ba?*

Mr. Ortonio. That's correct.

Ms. Divinagracia. So, in short, *hindi naka-address sa iyo ang mga AOMs na sinagot mo. Tama ba?*

Mr. Ortonio. That's correct.

Ms. Divinagracia. *Noong hearing noong November 25, 2024, sinabi mo na wala kang personal na kaalaman sa aktuwal na paggastos ng confidential funds ng OVP. Tama ba?*

Mr. Ortonio. Yes, Ma'am, that's correct.

Ms. Divinagracia. *At sa pagkakaalam mo, alam din ito ng Vice President. Tama ba?*

Mr. Ortonio. *Alam ng Vice President, Ma'am, that I do not know of anything.*

Ms. Divinagracia. Or that you do not have any personal participation, as you claim, *doon sa paggastos ng confidential funds?*

Mr. Ortonio. Yes, Ma'am.

Ms. Divinagracia. *Gayunpaman, ikaw ang itinalaga ng Vice President na tumugon sa mga Audit Observation Memoranda na binanggit mo. Tama ba?*

Mr. Ortonio. Yes, Ma'am. For audit observations, Ma'am, it's usually either the Assistant Chief of Staff or the Chief of Staff who responds on behalf of the agency.

Ms. Divinagracia. Okay. Regardless *kung may kaalaman ang Chief of Staff at Assistant Chief of Staff, iyan ang sinasabi mo?*

Mr. Ortonio. As representative of the organization, Ma'am.

Ms. Divinagracia. Okay. *Ngayon ipapakita sa iyo ang mga sulat ng OVP sa COA na may petsang Oktubre 19, 2023, November 30, 2023, April 19, 2024, August 27, 2024. Ito ang mga naging tugon mo sa lahat ng Audit Observation Memoranda ng Commission on Audit. Tama ba?*

Mr. Ortonio. Yes, Ma'am. Just a note, Ma'am, that for the three other documents, Ma'am, I'm just one of the signatories, Ma'am.

Ms. Divinagracia. Yes. Yes. But a signatory nonetheless. Yes. Okay. *Ngayon sa mga AOMs na inisyu (issue) ng COA sa liquidation ng OVP para sa lahat ng quarters na iyong sinagot, pinuna nito ang mga PFP na isinumite ng OVP dahil hindi nakasaad ang tiyak na confidential activity na paggagamitan ng confidential funds. Tama ba?*

Mr. Ortonio. Based on the AOM, Ma'am. Yes.

Ms. Divinagracia. Yes. *At sa inyo namang sulat to the COA, iyong mga sulat na that you were confronted with, ipinagtanggol ninyo itong PFP na ito. Tama ba?*

Mr. Ortonio. Yes.

Ms. Divinagracia. *Sinabi ninyo na, and I quote, "There's no specific guideline on the details of confidential activities to be indicated."*

Mr. Ortonio. Yes, Ma'am. Yes, Ma'am, based on the annexes of the JC, Ma'am.

Ms. Divinagracia. Okay. Now, you mentioned the Joint Circular. Now, Mr. Ortonio, may I invite you to Article 4.2 of the Joint Circular, which states, and I quote "All allocations of confidential funds and/or intelligence funds shall be supported with a Physical and Financial Plan

indicating the proposed amount allocated for each program, activity, and project, where disbursements pertaining to confidential expenses and intelligence expenses shall be based," end of quote.

Mr. Ortonio. Sorry, Ma'am. What provision again, Ma'am?

Ms. Divinagracia. Four point two.

Mr. Ortonio. Four point two. Okay, Ma'am. Yes.

Ms. Divinagracia. *At inaamin mo na, tulad ng pag-amin mo kanina, iyong mga PFP na ito na inyong isinumite tanging ang isinasaad lamang ay iyong mga umbrella programs na Good Governance Program and Socio-Economic Delivery Program. Tama ba?*

Mr. Ortonio. Based on the documents that were prepared, Ma'am, it only indicated the umbrella programs.

Ms. Divinagracia. Okay. *Ngunit inamin ninyo na rin na ang dalawang ito ay mga pawang umbrella programs lamang at may kaniya-kaniyang individual programs sa ilalim nito. Tama ba?*

Mr. Ortonio. Ma'am, for the programs, Ma'am, that was indicated, I can say, Ma'am, that there are specific programs based on the regular funding. But as to the activity—

Ms. Divinagracia. That is not the question, Mr. Ortonio. *Ang tinatanong ko lamang sa inyo iyong mga—iyong dalawang programs na ito, iyong umbrella programs na ito, dahil sila ay umbrella programs lamang, mayroon itong mga particular programs under these umbrella programs. Correct?*

Mr. Ortonio. Ma'am, if we are talking about the regular budget, Ma'am, yes, there are specific activities under those programs.

Ms. Divinagracia. And even you would confirm *ikaw din ang nag-submit sa COA ng mga Protective Intelligence Operation Reports. Tama ba?*

Mr. Ortonio. Again, Ma'am?

Ms. Divinagracia. Protective Intelligence Operation reports or *ang mga PIORs, hindi ba?*

Mr. Ortonio. I am the designated liaison officer for the confidential funds, Ma'am. And yes, I submitted documents, Ma'am, in a sealed envelope, Ma'am.

Ms. Divinagracia. When you say "documents," those documents include the PIORs. *Tama ba? Kasama doon sa isinabmit (submit) mo iyong mga PIORs. Tama ba?*

Mr. Ortonio. Yes, Ma'am, in response—as an attachment to the response to the AOM.

Ms. Divinagracia. In fact, and I would assume *binasa mo rin itong mga PIORs na ito bago mo ito isinumite?*

Mr. Ortonio. Unfortunately, Ma'am, I was not able to read the reports, Ma'am, because these are sealed already, Ma'am. I submitted the documents only, Ma'am, to the COA.

Ms. Divinagracia. Okay. *Tinanong mo rin ba—Sinabi mo kanina nakipag-coordinate ka kay Lachica—sorry, sa Security Officer at sa Special Disbursing Officer. Tama ba?*

Mr. Ortonio. Yes, I coordinated with them.

Ms. Divinagracia. *Tinanong mo ba sa kanila kung ano ang nilalaman ng PIORs na ito?*

Mr. Ortonio. No, I did not anymore ask, Ma'am.

Ms. Divinagracia. Okay. Now, *doon sa AOMs din na iyong sinagot, pinuna din ng Commission on Audit iyong line item na Medical and Food Aid. Tama ba?*

Mr. Ortonio. Yes.

Ms. Divinagracia. *At sinabi ng COA sa kanilang Audit Observation Memoranda na ang line item na ito ay hindi allowable sa gastusin ng confidential funds sa ilalim ng Joint Circular. Tama ba?*

Mr. Ortonio. Based on the AOM, Ma'am.

Ms. Divinagracia. Yes.

Mr. Ortonio. And we were able to send our reply to this issue or concern.

Ms. Divinagracia. Okay. And you justified the inclusion of that line item. *Pinagtanggol ninyo doon sa sagot ninyo sa AOMs, pinagtanggol ninyo iyong pagsama ng line item na ito sa inyong Accomplishment Reports, tama ba?*

Mr. Ortonio. Yes, we were able to explain it through our reply.

Ms. Divinagracia. *Sinabi ninyo na pinapayagan ito sa ilalim ng 4.8.4 na sumasaklaw sa purchase or rental of supplies, materials, and equipment for confidential operations. Tama ba?*

Mr. Ortonio. Yes.

Ms. Divinagracia. And you will also confirm *na itong pera* supposedly for the purchase of rentals of supplies, materials, and equipment for confidential operations, *hindi kayo gumastos. Ibig sabihin, iyong supposed supplies, materials, and equipment, hindi ang OVP ang bumili nito. Tama ba?*

Mr. Ortonio. Based on the information that was provided to me by the Security Officer, payments were made directly to the informants or the agents.

Ms. Divinagracia. *At tama rin—kukumpirmahin mo rin ba na wala kang nakita kahit anumang official receipt sa pagbili ng kahit alin dito sa mga tinutukoy na supplies na ito? Unahin natin sa medicine. Wala kang nakitang kahit anong official receipt mula sa kahit alinmang drugstore, pharmacy, o supplier, tama ba?*

Mr. Ortonio. I was not able to see, Ma'am, any ORs.

Ms. Divinagracia. Yes. Okay. And you will also agree *na sa pangkalahatan, ang pagbili ng gamot at pagkain ay ginagawa sa regular na proseso, pang-araw-araw. Ibig sabihin, bibili mula sa sources like drugstores, pharmacy, at ang bumibili naman ay iisyuhan ng karampatang official receipt, tama ba?*

Mr. Ortonio. Sorry, Ma'am, the question—so this is in parang—

Ms. Divinagracia. Purchase.

Mr. Ortonio. Kung the usual purchase?

Ms. Divinagracia. Yes, the usual purchase.

Mr. Ortonio. Yes. If it's for the usual purchase, yes, *bibili ka* and then you are given a receipt.

Ms. Divinagracia. *At hindi mo na tinanong si Ms. Acosta at ang Security Officer na iyong nabanggit kung nasaan ang supposed official receipts bilang patunay na ito nga ay nabili, mga supplies na ito?*

Mr. Ortonio. Ma'am, the explanation that was provided to me, Ma'am, was that *binigay po ang pera* directly *doon sa mga* informants and agents, and the informants and agents *na po* iyong *bumili noong mga* medical and food supplies. So, it's the acknowledgment receipt, which is the proof of the release of the funds to the informants or the agents.

Ms. Divinagracia. In short, *ang sinasabi mo, kahit si Gina Acosta at ang Special Disbursing Officer walang nahawakan kahit isa mang official receipt para sa supposed purchases na ito. Yes?*

Mr. Ortonio. Ma'am, as to the exactness, Ma'am, *kung mayroon ba silang nahawakan na official receipt, that I cannot provide an answer po.*

Ms. Divinagracia. But at the end of the day, *wala silang binigay sa iyo. Pina-explain mo sila pero wala pa rin silang binigay na official receipt. Kahit anong official receipt for any of these supposed purchases.*

Mr. Ortonio. *Wala po silang nabigay na official receipts, Ma'am, but there were acknowledgment receipts, Ma'am, that were provided.*

Ms. Divinagracia. You will also confirm *na iyong OVP, alinsunod sa mga proyekto nito, ginagawa naman nito na bumili ng mga medisina, tama ba?*

Mr. Ortonio. Yes, we do have our...

Ms. Divinagracia. Yes.

Mr. Ortonio. ... funding for purchase of supplies.

Ms. Divinagracia. Yes. In fact, *sa Item One noong sulat dated August 22, 2022, humingi kayo ng P144.72 million in regular funds for the OVP's medical assistance program. Tama ba?*

Mr. Ortonio. Yes, that's for the medical and burial assistance, Ma'am, but that is for the regular activities of the office.

Ms. Divinagracia. Okay. *At noong binili n'yo iyon, in fact doon sa letter n'yo dated August 22, 2022, may nilakip pa kayo na lingguhang accounting ng mga benepisyaryo ng halaga na inyong hiningi—hinihingi, tama ba?*

Mr. Ortonio. For the projection Ma'am.

Ms. Divinagracia. Yes, for the projection. *Iyong letter n'yo din noong September 19, 2021, kahit iyon may nakalakip na transmittal na the submitted computation in forecasting the—which says, and I quote, "the submitted computation in forecasting the requirement for medical assistance," tama ba?*

Mr. Ortonio. Yes, Ma'am. But again, Ma'am, that is for the regular activities of the office for the medical and burial program.

Ms. Divinagracia. Okay. In short, Mr. Ortonio, *maaari sana na ang OVP sa pamamagitan ng SDO ang bumili ng mga gamot at ibigay na lamang ito sa mga umano'y informants. Tama ba?*

Ms. Ferrer. Your Honor, please.

The Presiding Officer. Counsel.

Ms. Ferrer. Speculative, Your Honor.

Ms. Divinagracia. Your Honor, just because the question is premised or couched as an "if" question doesn't mean it's automatically speculative. It only becomes speculative, Your Honor, if it requires the witness to make a conjecture without reference to any prior admitted facts, Your Honor.

Ms. Ferrer. Your Honor, please...

Ms. Divinagracia. If I may...

The Presiding Officer. With the permission of Counsels. I see your point Atty. Kristine.

But, Mr. Ortonio, *puwede din bang—Hindi. May binigyan kayo ng medicine hindi ba, sa regular budget ng OVP?*

Mr. Ortonio. Yes *po*, we do have our medical and burial program, Your Honor.

The Presiding Officer. *At iyong binibigyan n'yo ng medicine at burial program, cash iyon?*

Mr. Ortonio. What we do *po* at that time is that *binibili po namin iyong medicine sa partner pharmacies of the OVP, and then we release it to the clients who approach the office for medical assistance.*

The Presiding Officer. In the form of medicine *na?*

Mr. Ortonio. In the form of medicine.

The Presiding Officer. So, I presume *itong binibili n'yo, gamit iyong regular budget, may resibo ito?*

Mr. Ortonio. Yes, Sir.

The Presiding Officer. *Ang ginamit n'yo na pang-food and medicines sa confidential fund,*

binigay n'yong direktso sa recipient; and presumably sabi ng recipient, "Ibibili ko ng pagkain ito, ibibili ko ng gamot ito"?

Mr. Ortonio. Yes *po*. Based on the information, Your Honor, provided by the Security Officer, that's how it was—*ganoon iyong* procedure on how the medical and food aid was.

The Presiding Officer. So, *walang resibo iyon?*

Mr. Ortonio. Based on the information I gathered, Sir, no official receipts were provided.

The Presiding Officer. *Nakalagay ba sa acknowledgment receipt kung for food or for medicine iyon, o kayo na lang iyong nag-tally na ito food, ito medicine?*

Mr. Ortonio. Sir, unfortunately, Sir, for the acknowledgment receipts, I was not able to see them personally, Sir.

The Presiding Officer. Not a single one?

Mr. Ortonio. No, Sir. At that time, Sir, I was not able to see any of the acknowledgment receipts.

The Presiding Officer. One last question. *Iyong chairs wala ring resibo iyon?*

Mr. Ortonio. *Iyong* regarding the chairs, Sir, based on the information also provided by the Security Officer, no receipt as well, Sir, because the representation was that *iyon iyong ipamimili nila* for the tables and chairs.

The Presiding Officer. So, what you're saying is, "*binigay din iyong pera sa informant,*" quote-unquote, that's your wording, *para bumili—"siya ang bibili ng chairs at iyon iyong bayad sa kaniya,"* quote-unquote.

Mr. Ortonio. That's based on the information provided by the Security Officer.

The Presiding Officer. Just one final question, Mr. Ortonio. So, literally, *may informant. Imbes na bayaran ng— imbes na bigyan ng kung ano, binayaran ng cash para bilhin iyong tables, iyong chairs, iyong food, iyong medicine, ganoon?*

Mr. Ortonio. Yes, Sir, based on the information provided, Sir.

The Presiding Officer. By the Security Officer.

Mr. Ortonio. By the Security Officer.

The Presiding Officer. That's the—*kumbaga, iyon iyong kuwento na binigay sa iyo?*

Mr. Ortonio. That's based—yes, that's based on the information that was provided by the Security Officer.

The Presiding Officer. *At hiwalay pa iyon sa pinapamigay n'yo na food and medical assistance sa regular budget ng OVP?*

Mr. Ortonio. Yes, that's for the regular clients that we—*iyong public na mga clients* that we receive *sa* office.

The Presiding Officer. When you say "clients," not informants?

Mr. Ortonio. Yes, Sir. That's correct, Sir.

The Presiding Officer. *Parokyano, iyong regular na nagpupunta, humihingi ng tulong o dumudulog sa OVP?*

Mr. Ortonio. Yes, that's correct, Your Honor.

The Presiding Officer. Your witness, Counsel.

Ms. Divinagracia. Okay.

The Presiding Officer. I hope it gave you the opportunity too, to take some of the throat meds that some of the Senator-Judges sent you, and I hope you can drink some warm water, Counsel. You may continue, Counsel.



Ms. Divinagracia. Yes, Your Honor. In a bit, I will be asking for time to take my *salabat* with me, Your Honor.

The Presiding Officer. Yes, Counsel, you may.

Ms. Divinagracia. But, in the meantime, Your Honor, I'll proceed with my examination.

The Presiding Officer. Please continue.

Ms. Divinagracia. Okay. Going back to the audit observation memoranda *na kanina in-identify mo na galing sa COA. Dito sa audit observation memoranda na ito*, particularly Prosecution's Exhibit P-I-12-a and P-I-12-b and P-I-12-e. *Dito sa tatlong AOMs na ito, finlag (flag) din ng Commission on Audit, or pinuna din ng Commission on Audit* iyong payment of incentives or traveling *sa mga accomplishment reports. Ayon sa COA, hindi rin ito allowable na gastusin ng confidential funds sa ilalim ng Joint Circular. Tama ba?*

Mr. Ortonio. That's what the AOM indicated, and we were able to send a reply as well.

Ms. Divinagracia. And in your reply, you said it is justified under 4.8.2 ng Joint Circular *bilang rental of transport vehicle related to confidential activities. Tama ba?*

Mr. Ortonio. That's correct.

Ms. Divinagracia. *Iyong salitang "incentives," you will admit and you will agree na hindi ito nag-a-appear sa Joint Circular. Ito ay sa inyong sariling piniling salita. Tama ba?*

Mr. Ortonio. Sorry. Again, Ma'am?

Ms. Divinagracia. The word "incentive," *hindi mo ito makikita sa Joint Circular. In fact, itong salita na ito, kayo lang ang gumamit nito, kumbaga, kayo ang pumili ng salitang ito na ilalagay sa accomplishment report?*

Mr. Ortonio. Based on the JC, that's not included *po*.

Ms. Divinagracia. Okay. And based on the JC, *iyong salitang "incentives," hindi lumalabas sa kahit anumang enumeration ng Item 4.8 na mga allowable confidential expenses. Tama ba?*

Mr. Ortonio. Based on the JC, no, it does not appear.

Ms. Divinagracia. *Ngayon, nang mapuna ito ng COA sa AOM for the third quarter of 2023, saka lamang naging transportation expenses ang mga halaga na supposedly naka-allot for the supposed incentives. Tama ba?*

Mr. Ortonio. Based on the report that was shown to me earlier, yes, but again, I would not have any idea on the preparation of the utilization report.

Ms. Divinagracia. Okay. In fact, *sa sagot n'yo sa AOM, you invoked 4.8.2, which refers to rental of transport vehicle. At sa inyo namang sagot sa Notice of Suspension, ang in-invoke n'yo naman, ginamit n'yo ang salitang "van rentals and trucking services," correct?*

Mr. Ortonio. Yes, that's correct.

Ms. Divinagracia. And what is more, *sa sagot n'yo sa Notice of Suspension, you confirmed, and I quote, "The OVP did not make any payment for incentives," correct?*

Mr. Ortonio. Based on the reply that we provided, yes, we confirm.

Ms. Divinagracia. Also, Mr. Ortonio, you will confirm *na in the course of your preparation—sa kurso ng pagpe-prepare mo sa reply ng AOM na ito hanggang maging sa ngayon, wala kang nakita na kahit anong kontrata sa pagrenta ng sasakyan sa buong records ng OVP. Tama ba?*

Mr. Ortonio. There was a—I do not have any *ano*, document *po*.

Ms. Divinagracia. Okay. Now, let's go to the certifications dated October 19, 2023, April 19, 2024, and August 27, 2024, which are Prosecution's Exhibits P-I-12-m, P-I-12-g, and P-I-12-k.

Ikaw ang nagsumite ng mga certifications na ito sa Commission on Audit, kalakip ng inyong reply sa audit observation memoranda?

Mr. Ortonio. Yes, this is part of the attachment to the replies.

Ms. Divinagracia. *At isinabmit (submit) n'yo ito, isinumite n'yo ito sana bilang or bilang umano'y patunay ng surveillance activity dahil pare-parehong sinasabi ng mga nasabing certification na ito na walang untoward incident na nagawa or naganap sa implementation ng mga proyekto ng OVP at sa mga engagement mismo ng Pangalawang Pangulo. Tama ba?*

Mr. Ortonio. Yes *po*, that's correct.

Ms. Divinagracia. In short, *ginagamit n'yo ang mga certification na ito bilang patunay na inyong opisina ay nagastos ang P125 million. Sorry. In short, ginagamit n'yo ito bilang patunay na ang nagastos na P125 million ay nagresulta nang walang untoward incident na nangyari doon sa mga identified supposed—sorry, not identified, but supposed confidential projects.*

Mr. Ortonio. As provided *po* by the Security Officer, this is the document that we attached to the replies.

Ms. Divinagracia. But you will confirm that *hindi mandato ng VP—you will confirm na mandato talaga ng VPSPG na panatilihin ang seguridad ng Bise Presidente. Tama ba?*

Mr. Ortonio. That's part of the duties and responsibilities of the VPSPG.

Ms. Divinagracia. Correct. And you will also confirm *na* beginning October 2022, and during the entire relevant period, the Vice President already had at least 470 protective security personnel or protective agents. *Tama ba?*

Mr. Ortonio. As to the exact number, Ma'am, of the VPSPG personnel, I cannot comment, Ma'am, but there's a unit that handles the security of the VP, which is the VPSPG.

Ms. Divinagracia. Let me refresh your memory, Mr. Ortonio. We will be showing you your letter to the DBM dated October 11, 2022, which is Prosecution's Exhibit P-I-4-d.

Mr. Ortonio. Yes, Ma'am.

Ms. Divinagracia. *Diyan sa letter na iyan, humihingi kayo ng addition or ng augmentation para sa special duty allowance ng VPSPG dahil tumaas ang bilang ng security officers and security or protective agents ng Vice President. Tama ba?*

Mr. Ortonio. Yes.

Ms. Divinagracia. *Sinabi n'yo rin diyan sa letter na iyan na as of October 10, 2022, the total count per roster of troops is 473?*

Mr. Ortonio. Yes, Ma'am. I mentioned, Ma'am, *na* I cannot—

Ms. Divinagracia. Yes. Thank you, Mr. Ortonio. I'm satisfied with your answer.

You will also confirm *na noong una, humigit-kumulang 95 lamang ang security personnel ng OVP. Tama ba? Kaya nga kayo humingi ng augmentation for special duty allowance dahil biglang nag-increase ito by almost fourfolds. Tama?*

Mr. Ortonio. Ma'am, I can only answer for the security deployment during the term of VP Sara, Ma'am.

Ms. Divinagracia. Correct. *Hindi ba isinaad n'yo rin dito sa letter na ito, in-explain n'yo, kasama ang letter dated August 22, 2022, dito in-explain n'yo bakit kayo humihingi ng special duty allowance?*

Mr. Ortonio. Yes, Ma'am.

Ms. Divinagracia. *Sinabi n'yo na from 95, tumaas nga ang bilang ng security detail...*

Mr. Ortonio. Yes, Ma'am. But—

Ms. Divinagracia. ...*ng Security Officer or protective agent sa ilalim ng VPSPG na ayon nga sa iyo, iyong mandato ay protektahan at i-ensure ang seguridad ng Bise Presidente. Tama ba?*

Mr. Ortonio. That's correct, Ma'am.

Ms. Divinagracia. *Aaminin mo rin na iyong security detail ng Bise Presidente, hindi ito mga karaniwang security guards. Ito ay miyembro ng AFP at PNP. Tama ba?*

Mr. Ortonio. ... Yes, Ma'am. That's correct.

Ms. Divinagracia. In fact, *sinabi mo rin sa same letter na iyan na 364 ng karagdagan or ng security detail ng Bise Presidente ay mga miyembro ng Armed Forces of the Philippines; at 140 naman ay miyembro ng Philippine National Police. Tama ba?*

Mr. Ortonio. Yes, Ma'am. That's correct.

Ms. Divinagracia. *Sa inyong kaalaman Mr. Ortonio, mayroon bang ibang Pangalawang Pangulo sa history ng Pilipinas na nagkaroon ng ganito karaming security detail?*

Mr. Ortonio. Ma'am, I cannot comment on that.

Ms. Ferrer. Objection.

Mr. Ortonio. I cannot comment for the previous Vice Presidents, Ma'am.

Ms. Divinagracia. So, you do not know. The answer is, you do not know.

Mr. Ortonio. What I can say, Ma'am, is I cannot comment, Ma'am, because I have no personal knowledge.

Ms. Divinagracia. You have no personal knowledge, that's correct.

You will also confirm *na iyong special duty allowance na inyong hiningi, ito ay karagdagang allowance lamang para dito sa VPSPG. Ibig sabihin, itong miyembro ng mga VPSPG, kumukuha na ito ng or tumatanggap na ng sweldo mula sa AFP sa ilalim ng General Appropriations Act for the members of the AFP, at iyong mga miyembro naman ng PNP tumatanggap ng sahod mula sa PNP. Kung alam n'yo, Mr. Ortonio.*

Ms. Ferrer. Your Honor, please.

The Presiding Officer. Counsel.

Ms. Ferrer. I will have to object, Your Honor, because Counsel has not shown the relevance of the salaries of VPSPG to the confidential funds, and, in fact, there was no finding from the COA-ICFAO regarding this matter.

Ms. Divinagracia. On two points, Your Honor.

The Presiding Officer. Kindly comment, Counsel.

Ms. Divinagracia. First, Your Honor, the fact that this was not flagged by the COA does not preclude this Honorable Court from making a finding on whether it is irregular or not. Number two, Your Honor, it's very relevant, Your Honor, because the primary justification for the confidential funds is for ensuring the security of the Vice President, which is already governed by the mandate of the VPSPG. In short, Your Honor, they requested funds, additional funds for an item that is already answered for by...

Ms. Ferrer. Quick reply, Your Honor.

Ms. Divinagracia. ...the mandate of the VPSPG.

The Presiding Officer. Let her finish, Counsel.

Ms. Divinagracia. And this is already paid for from a separate funding, Your Honor.

Ms. Ferrer. Quick reply, Your Honor.

The Presiding Officer. Yes, Attorney Kristine.

Ms. Ferrer. The issue on the VPSPG salary, Your Honor, being allegedly covered by the confidential funds, is not among the allegations in the Articles of Impeachment. Neither was this matter alleged in the impeachment complaints. Number two, the Impeachment Court only relies on the findings of the COA, Your Honor. That's the reason why the COA was placed on the witness stand and testify on its matters, Your Honor. With all due respect, that the matter of determining

whether the salaries were indeed covered by the confidential funds is a matter outside the powers of the Impeachment Court to determine, Your Honor.

Ms. Divinagracia. Your Honor, if I may just reply, just to set the record straight, Your Honor, because the Prosecution....

The Presiding Officer. Brief reply, Counsel, before the Chair makes a ruling. Please continue.

Ms. Divinagracia. Your Honor, we, at no point and at no time, did the Prosecution say that the confidential funds were used to pay for the salary of the VPSPG. What we are saying, Your Honor, is that the VPSPG is already paid from a separate account, from a separate fund, salary for the purpose of affording or providing protection to the Vice President. That now, Your Honor, they requested for funds, additional funds to pay for the very same protection.

Ms. Ferrer. Your Honor, please.

Ms. Divinagracia. That was already being...

Ms. Ferrer. Counsel is testifying, Your Honor.

Ms. Divinagracia. ...afforded by the VPSPG

The Presiding Officer. Actually, Counsels, please.

Attorney Mae, you already were able to actually say what you want to say on the record based on your comments on the objection. I will have to sustain the objection of Counsel for the Respondent. The salary of the VPSPG is irrelevant because the confidential funds cannot be used to pay for the salaries for security and, if at all, to buy confidential information, if at all, which has also been shown to have been done. We see the point, Counsel, Attorney Mae, that she has—the Vice President has—473 security personnel already that, as you stated in your offer, should be doing the job that they are spending this confidential fund for.

However, the witness has already answered that he may not be in a position to answer that question specifically.

Continue with your point.

Ms. Ferrer. Thank you, Your Honor.

The Presiding Officer. Move on, Attorney Mae.

Ms. Divinagracia. Mr. Ortonio, you will also confirm *na sa inyong sulat na may petsang* August 22, 2022, *sinabi ninyo na* as early as July 1, 2022, *pitong* OVP satellite office *na ang naitatag ng* Office of the Vice President. *Ito iyong mga* satellite offices *sa* Bacolod, Cebu, Dagupan, Davao, Surigao, Tacloban, *at* Zamboanga. *Tama ba?*

Mr. Ortonio. Yes, that's correct.

Ms. Divinagracia. *At noong* point—sorry. *Bawat isa nito sinabi ninyo*, and I quote, “are catering to an average of 100 to 150 clients per day.” *Tama ba?*

Mr. Ortonio. Yes, that's correct.

Ms. Divinagracia. You will also agree *na walang naiulat na* untoward incident *sa* rollout *ng mga* satellite offices *na iyon bago ang* December 21, 2022. *Tama ba?*

Mr. Ortonio. In terms of the operations within the satellite office, no untoward incidents.

Ms. Divinagracia. Okay. And you will confirm that during the rollout of these satellite offices, *wala pang* confidential funds *ang* Office of the Vice President. *Tama ba?*

Mr. Ortonio. During this time, Ma'am.

Ms. Divinagracia. *Wala pa?*

Mr. Ortonio. During this time.

Ms. Divinagracia. Okay. And you will also confirm *na* beginning fourth quarter of 2023 up to the present, you continue to roll out satellite offices and projects under your umbrella programs,

the good governance program and socio-economic delivery program. *Tama ba?*

Mr. Ortonio. Yes.

Ms. Divinagracia. And up to this time, *wala ring naiulat na* untoward incident *sa mga* rollout *ng mga proyektong ito. Tama ba?*

Mr. Ortonio. Yes.

Ms. Divinagracia. Yes. Now, *itong* certification, which is Prosecution's evidence P-I-12-m, *nakasulat dito na* this—and I quote, "This certification is being issued upon the request of the Office of the Vice President for whatever legal purpose it may serve," end of quote. *Tama ba?*

Mr. Ortonio. Yes, Ma'am, based on the document.

Ms. Divinagracia. Based on the document. *Kung gayon, hindi ito record na iniingatan sa karaniwang takbo ng gawain ng* Office of the Vice President. In short, this is not a record kept in the ordinary business of the Office of the Vice President. Yes?

Mr. Ortonio. Yes, I would say so, Ma'am.

Ms. Divinagracia. That certification was only produced upon request, *tama ba*, based on that document?

Mr. Ortonio. Ma'am, for this specific document, Ma'am, I cannot say that it is upon request, Ma'am. I cannot—based on my understanding, I cannot assume.

Ms. Divinagracia. Even if it is expressly stated in this document that, "This certification is being issued upon the request of the Office of the Vice President," *hindi mo rin masasabi na* issued *ito* upon the request?

Ms. Ferrer. Asked and answered, Your Honor.

Ms. Divinagracia. No, Your Honor, that's just the follow-up, Your Honor.

The Presiding Officer. Witness will answer.

Mr. Ortonio. I cannot automatically assume, Ma'am, *na* it is made because through a request just merely because of a statement that indicates *na* based on a request.

Ms. Divinagracia. Okay. So, *ibig sabihin mo, maaaring nagkamali lang* *iyong* explicit statement *na ito?*

Ms. Ferrer. Your Honor, please.

Mr. Ortonio. No—

Ms. Ferrer. Your Honor.

The Presiding Officer. What is the basis of the objection?

Ms. Ferrer. Misleading, Your Honor, "*maaaring nagkamali lang.*"

Ms. Divinagracia. How is it misleading, Your Honor?

The Presiding Officer. Or argumentative.

Ms. Ferrer. Or argumentative.

The Presiding Officer. Or argumentative. Sustained. That's the witness's answer, Counsel, however unacceptable it may be.

Ms. Divinagracia. Also, in those four certifications that you were earlier confronted with, *wala ring nakalagay, nakasulat na* amount, *wala ring nakasulat na pangalan na* *pinagbigyan ng* confidential funds, *walang sinasabi kung saan ginastos* basically *iyong* confidential funds *na pinapatunguhan* *diyan sa apat na* certifications *na iyan. Tama ba?*

Mr. Ortonio. Based on the document, Ma'am, no, it does not indicate.

Ms. Divinagracia. Okay. Also, Mr. Ortonio, can you please refer to Exhibit P-I-12-m. This is the first certification. Do you see that?

Mr. Ortonio. Yes.

Ms. Divinagracia. You will confirm *na iyang* period *na sakop ng* certification *na iyan* ay December 20 to December 31. *Tama ba?*

Mr. Ortonio. Based on the document, Ma'am, yes, it indicates 20 to 31.

Ms. Divinagracia. *Pero ang mismong liquidation kung saan ninyo inilakip iyang certification na iyan, ang period na sakop ay December 21 hanggang December 31 lamang.*

Mr. Ortonio. 31.

Ms. Divinagracia. *Tama?*

Mr. Ortonio. Yes, based on the documents that were submitted.

Ms. Divinagracia. So, in short, *may* one day *na covered ng* certification *na hindi covered ng* liquidation. *Tama ba?*

Mr. Ortonio. If you will base it, Ma'am, based on my understanding, if you will base it on the liquidation report, *mayroong isang araw.*

Ms. Divinagracia. *Mayroong isang araw.* Thank you.

Your Honor, may I just have one minute, Your Honor, to take a sip from my—salabat ko.

The Presiding Officer. Please, Counsel. Take your salabat, Counsel.

You may also do the same, Mr. Ortonio.

Mr. Ortonio. Thank you, Sir.

Ms. Divinagracia. Okay. May I proceed, Your Honor?

The Presiding Officer. Counsel may proceed.

Ms. Divinagracia. Okay. Mr. Ortonio, *balikan natin iyang sulat ninyo* dated November 30, 2023, which is Prosecution's Exhibit P-I-12-D. It's already with you.

Mr. Ortonio. P-(dash).

Ms. Divinagracia. I-12-D.

Mr. Ortonio. Yes, Ma'am.

Ms. Divinagracia. *Diyan sa* same letter *na iyan, sinabi ninyo,* and I quote, "The OVP identified"—Okay, *sa* letter *na iyan, sinikap ninyong ipaliwanag ang pangangailangan ninyo* for confidential funds. *Sinabi ninyo,* and I quote, "The OVP identified the need for the conduct of surveillance activities to enable to craft narrowly targeted and responsive programs that would ensure peace and order and prevent criminal activities, particularly those of organized criminal groups and communist insurgents," end of quote.

Ngunit, you will confirm, *sa parehong sulat ninyo* dated August 22, 2022, *inamin ninyo na nga na noong July 1 pa lamang, bago pa humiling ang OVP ng* confidential funds, *natukoy na ng OVP*—sorry, in that same letter, I am referring to that same letter.

In that same letter, *inamin ninyo na* as early as July 1, 2022, *bago pa humiling ang OVP ng* confidential funds, *natukoy na ng OVP ang mga programa at aktibidad na nakatuon sa* poverty alleviation, *mga banta sa kapayapaan at kaayusan, at pagsulong ng kaunlarang pang-ekonomiya.* *Tama ba?*

Mr. Ortonio. Yes, that is indicated in the letter.

Ms. Divinagracia. *Dagdag ninyo pa, bilang katwiran,* I quote, "It was necessary to conduct surveillance activities to determine where best to implement its programs to maximize their impact and reach the isolated, underserved, and unserved areas. As such, in August 2022, the OVP submitted a request through the DBM for confidential fund budget for surveillance activities which are intended to support the mandate and operations of the OVP," end of quote. *Tama ba?*

Mr. Ortonio. Yes, that's correct, Ma'am.

Ms. Divinagracia. *Subalit—balik tayo sa letter ninyo dated August 22, 2022, which is Prosecution's Exhibit P-I-4-a. You will confirm na doon sa paliwanag ninyo sa paghingi ninyo ng confidential funds, nowhere there o wala kahit saan man diyan lumalabas ang salitang "surveillance." Tama ba?*

Mr. Ortonio. Based on the letter that we submitted, Ma'am, there's no indication of the word "surveillance."

Ms. Divinagracia. *Dahil nga ang purpose na sinabi ninyo ay, and I quote, "For and in consideration of the safe implementation of the various projects and activities under the Good Governance Program and the conduct of official engagements and functional representation."*

Diyan sa same letter na iyan, hindi rin sinabi na gagamitin ang confidential funds para sa identification of areas for program implementation. Tama ba?

Mr. Ortonio. It is not specifically stated, Ma'am, in the letter, Ma'am. Although in the letter, Ma'am, there's already "in consideration for the—of the safe implementation of various projects and activities under the Good Governance."

Ms. Divinagracia. Yes. *Pero hindi sinabi dito na, "The confidential funds will specifically be used for identification of areas for program implementation."*

Mr. Ortonio. Based on the letter request, Ma'am, there's no specific explanation, Ma'am.

Ms. Divinagracia. Yes, yes. And the explanation given was, in fact, for the safe implementation of OVP initiatives and confidence-meeting—confidence-building. *Tama ba?*

Mr. Ortonio. Yes, based on the letter request, Ma'am, that's the wordings that were indicated.

Ms. Divinagracia. And also, if you will refer to the Physical and Financial Plan that you subsequently submitted to the DBM, *sinabi ninyo pa, nilagay ninyo o sinaad ninyo sa physical target: number of identified areas with surveillance conducted and monitored. Hindi ho ba?*

Mr. Ortonio. If we will base it on the document, Ma'am...

Ms. Divinagracia. Yes.

Mr. Ortonio. ... yes.

Ms. Divinagracia. So, in short, *kahit hindi nakalagay ang bilang, mayroon nang mga identified areas. May mga lugar nang natukoy diyan sa Physical and Financial Plan. Tama ba?*

Mr. Ortonio. Ma'am, I cannot directly answer, Ma'am, if there were identified areas already when the PFP was crafted, Ma'am.

Ms. Divinagracia. Okay. So, *punta na lang tayo ngayon sa August 22—doon sa dating August 22, 2022 letter na inamin mo nga na as early as July 1, 2022, mayroon nang pitong satellite office na naitalaga sa Bacolod, Cebu, Dagupan, Davao, Surigao, Tacloban, Zamboanga. Tama ba?*

Mr. Ortonio. Yes, based on the letter that we submitted.

Ms. Divinagracia. And in that same letter, *naglakip pa kayo ng Annex A na parehong sulat ng aktuwal na benepisyaryo ng medical assistance, linggo-linggo, mula unang linggo ng July 2022 hanggang sa mga sumusunod na panahon. Tama ba?*

Mr. Ortonio. Yes, this is the projection that we submitted.

Ms. Divinagracia. *At nakalimbag din sa item 3 ng same letter na iyon na tailo pang karagdagang satellite office ang augmentation ng Libreng Sakay, tatlong OVP food truck, at Peace 911 sa Marawi. Tama ba?*

Mr. Ortonio. Yes, that's indicated in Item no. 3 for the additional positions.

Ms. Divinagracia. Okay. So, even before the confidential funds were released or *bago pa mailabas ang confidential funds, mayroon na kayong mga na-identify na paglalagyan ng mga satellite offices. Tama ba?*

Mr. Ortonio. Yes, there were plans already.

Ms. Divinagracia. And *pagro-roll out-an ng mga programa ng OVP. Tama?*

Mr. Ortonio. For activities.

Ms. Divinagracia. Okay. *Diyan sa November 30, 2023 letter din ninyo, sinabi ninyo, and I quote, "The OVP opened exploratory talks on the surveillance activities to be conducted and identified information agents to be engaged. The OVP built its information database and established a network of information agents. As such, when the requested confidential funds was released on December 13, 2022 through SARO-BMB-C-22-0012004, the OVP was able to finalize definitive agreements and obligations based on the plan." End of quote. Inilarawan ninyo sa sulat na iyan ang exploratory talks, tama ba?*

Mr. Ortonio. Yes, this is based on the information from our Security Officer.

Ms. Divinagracia. *Sinabi ninyo rin, information agent na identified, kasama ng information database, network of information agents, tama ba?*

Mr. Ortonio. Yes, as provided by our Security Officer.

Ms. Divinagracia. Okay. Again, *wala ni isa man dito ang nabanggit sa August 2022 confidential fund request, tama ba?*

Mr. Ortonio. Based on the initial request, no information indicated.

Ms. Divinagracia. *At wala rin kahit alinman dito ang lumalabas sa PFP for 2022, tama ba?*

Mr. Ortonio. When you say—You mean, Ma'am, *iyong—*

Ms. Divinagracia. These items, these words, "information database, network information agents, identified agents," *walang kahit anuman na lumalabas?*

Mr. Ortonio. Yes, Ma'am. Based on the document presented earlier, Ma'am, no such wordings, Ma'am.

Ms. Divinagracia. *Hindi rin kayo nakilahok sa supposed exploratory talks na ito? Binatay ninyo lamang ito sa kung anong ini-report sa inyo, tama ba?*

Mr. Ortonio. I had no participation, Ma'am, because on matters of security, Ma'am, that is not my expertise, Ma'am. So, this is from our Security Officer.

Ms. Divinagracia. In that same letter, as I've mentioned, and as I've read, *binanggit ninyo rin, "finalized definitive agreements."*

Mr. Ortonio. Yes.

Ms. Divinagracia. *Pero wala kayong ni isang isinabmit (submit) din na kahit isang definitive agreement. Kahit isa sa mga definitive agreements na inyong tinutukoy dito sa inyong November 30, 2023 letter, tama ba?*

Mr. Ortonio. Ma'am, when you pertain to definitive agreements, Ma'am, you mean documented agreements, Ma'am?

Ms. Divinagracia. Yes, *kasi para maging definitive agreements, kailangang cast in stone. Ibig sabihin, nakasulat siya.*

Mr. Ortonio. Ma'am, in terms of any documentation or documented agreements, Ma'am, there were no documents that were provided, Ma'am. And as to how agreements were made on the ground, Ma'am, again, I cannot provide any information.

Ms. Divinagracia. You will confirm that from the time the SARO was released on December 13 to the drawdown of the check *noong December 20, 2022, pitong araw lamang ang nag-lapse. Ang posisyon ba ng inyong opisina, sa loob ng pitong araw na iyon, na-finalize ninyo ang definitive agreements sa supposed nationwide network ng mga ahente na inyong binanggit sa inyong letter?*

Mr. Ortonio. Ma'am, as to how the agreements were finalized or made, Ma'am, that I cannot provide an answer, Ma'am, if those were done within the seven-day period.

Ms. Divinagracia. Okay. In that same letter, for the first time, you also denied that the 2022

confidential funds were spent in just 11 days. And your explanation was, and I quote, "On December 20, 2022, a cash advance for confidential fund was drawn to facilitate payment." Please take note of these words—"for the obligations already incurred. Hence, the P125 million confidential funds were fully utilized for expenses planned, implemented, and paid during the three-month period." Meaning, October to December 2022, and not within mere 11 days, as what the audit observations may have suggested." End of quote. *Nakalagay iyan sa inyong sagot.*

Mr. Ortonio. Yes, Ma'am. Ma'am, in terms of the—

Ms. Divinagracia. No, it's okay, Mr. Ortonio. I'm satisfied with your answer.

Ms. Ferrer. Your Honor, please.

The Presiding Officer. Yes, Counsel.

Ms. Ferrer. Can the witness be allowed to answer?

Ms. Divinagracia. Your Honor, the witness already satisfied the question. He has already answered.

The Presiding Officer. The question was answerable by yes or no. You will be afforded your chance, Attorney Kristine, during your cross to make him explain that point.

Proceed, Counsel.

Ms. Divinagracia. So, you mentioned earlier obligations, quote-unquote, "already incurred and expenses already paid." So, *ang ibig sabihin ng* "already incurred" *ay nangako ng magbayad ang OVP bago pa mailabas ang pera. Tama ba?*

Mr. Ortonio. Ma'am, I cannot specifically say, Ma'am, because arrangements made on the ground, Ma'am, I have no personal knowledge on it.

Ms. Divinagracia. *Pero lumagda ka sa letter na iyan, hindi ba?*

Mr. Ortonio. Yes, Ma'am. Again, Ma'am, this information, Ma'am, came from the information from our Security Officer, Ma'am.

Ms. Divinagracia. So, *ibig sabihin, isinulat mo lang, mechanically, eksaktong words na finid (feed) sa iyo ng kausap mo. Ganoon ba? Na hindi mo naiintindihan kung ano ang iyong isinusulat. Tama ba?*

Mr. Ortonio. First, Ma'am, *hindi po siya mechanically na isinulat ko lang po kung ano 'yung sinabi.* Of course, Ma'am, based on the information that was provided to me, Ma'am, *iyon 'yung inilatag ko doon sa letter, Ma'am.*

Ms. Divinagracia. *Iyon 'yung inilatag mo.*

Mr. Ortonio. For the drafting of the letter.

The Presiding Officer. Counsel, allow me.

Kayo po ang gumawa noong sulat, Ginoong Ortonio, hindi ba?

Mr. Ortonio. Yes.

The Presiding Officer. *Pumirma kayo?*

Mr. Ortonio. Yes, Your Honor.

The Presiding Officer. *Kayo ang gumawa? Kayo po ang gumawa noong sulat?*

Mr. Ortonio. Yes, Your Honor.

The Presiding Officer. *Base sa nakuha n'yong impormasyon kay Gina, kay Colonel Lachica, at iba pang opisyal, ano pong ibig sabihin n'yo diyan sa pahayag n'yong iyan: "to facilitate payment for the obligations already incurred?" Ibig sabihin, may utang na, babayaran na lang. Na-incur na 'yung expense, babayaran na lang.*

Mr. Ortonio. Sir, based on what was shared to me, Sir, *hindi siya utang*, but arrangements have been done on *mga* activities that will be done and then the payment will be done once the money would be available already.

The Presiding Officer. Mr. Ortonio, what do you mean by "obligations already incurred?" *Anong ibig sabihin para sa inyo noong isinulat n'yong iyon: "obligations already incurred?" Sa simpleng salita, bayarin.*

Mr. Ortonio. *Ano, Sir, what I meant on this statement, Sir, is that there are already arrangements that have been coordinated, Sir, prior to the release of the fund.*

The Presiding Officer. When you say arrangements *nga, may ipinangako nang bayaran, hindi pa lang nababayaran. Bayarin.* Obligations already incurred. *May obligasyon na. May pangako na na bayaran. Iyon ba iyon?*

Mr. Ortonio. Sir, *hindi siya pangako, Sir, na bayaran, but mayroon na siyang mga—how do I explain it, Sir? Parang mayroon nang arrangement, Sir, that can be—that will be done and then, 'yung payment, Sir, will be once available na siya.*

The Presiding Officer. Sir, in the ordinary course of meaning, that's how you define "obligations already incurred" that you wrote?

Mr. Ortonio. Yes, Sir, based on how I understand the information, Sir, that's how I indicated it in the letter.

The Presiding Officer. That's his answer, Counsel. You may proceed.

Ms. Divinagracia. Okay. But you will confirm that on those three months referred to in your letter, October, November—and November, but the early parts *ng* December, *wala pang* allotment *na maaaring pagbasehan ang OVP ng obligasyon ng* confidential funds. *Tama ba?*

Mr. Ortonio. There was no allotment as of yet.

Ms. Divinagracia. *Kung ganoon, wala ring certification of availability of funds na maaaring nailabas para sa mga obligasyon na iyon. Tama ba?*

Mr. Ortonio. There was no document yet released, Ma'am.

Ms. Divinagracia. Okay. *Alam n'yo rin, Mr. Ortonio, dahil sa tagal ng inyong paninilbihan bilang kawani ng gobyerno, alam n'yo na walang obligasyon ang gobyerno na maaaring pasukin nang walang appropriation at katumbas na allotment. Tama ba?*

Mr. Ortonio. That's correct, Ma'am.

Ms. Divinagracia. *At alam din ninyo, base doon sa Joint Circular na iyong paulit-ulit na sinayt (cite) sa mga letters n'yo, alam n'yo na ang cash advance ay dapat mauna sa gastos. Tama ba?*

Mr. Ortonio. That's correct, Ma'am.

Ms. Divinagracia. *Hindi ito maaaring legal na gamitin para i-reimburse o pantakip sa mga gastusing nagawa na. Tama ba?*

Mr. Ortonio. For reimbursements, Ma'am, yes. That's indicated in the JC.

Ms. Divinagracia. Okay, thank you.

Now, *pumunta na tayo sa Notice of—so, your reply to Notice of Suspension. Ikaw din sumagot sa reply—ikaw rin ang sumagot sa Notice of Suspension, hindi ba?*

Mr. Ortonio. Yes, Ma'am, I'm one of the signatories.

Ms. Divinagracia. I am referring to—the Notice of Suspension that I'm referring to is Prosecution's Exhibit P-I-13-a.

Dito sa Notice of Suspension na ito, pinuna ng COA, and I quote, "There is discrepancy in the total amount of expenses based on the submitted Accomplishment Report as against the DEPs." Ibig sabihin ng COA, hindi nagtutugma ang total amount ng expenses sa Accomplishment Report at sa DEPs na sinabmit (submit) ng inyong opisina, tama ba?

Mr. Ortonio. Yes, Ma'am, that's correct.

Ms. Divinagracia. *Ayon sa COA, ipinakita ng Accomplishment Report na iyong sinumite na*

ginamit ang confidential funds sa mga gastusing may kabuuang P125 million. Pero pagdating sa DEPs, nang i-total na ito, ang gastusing actual na naganap ay may kabuuang P125,150,000, tama ba?

Mr. Ortonio. Yes po, that's correct.

Ms. Divinagracia. In short, *may pagkakaibang P150,000?*

Mr. Ortonio. Yes.

Ms. Divinagracia. *At noong sumagot kayo diyan sa Notice of Suspension na iyan—I'm referring to your letter dated March 13, 2024, which is Prosecution's Exhibit P-I-13-a. Sa sagot n'yo, ang paliwanag n'yo ay 'yung mga resibo, and I quote, "...may have been inadvertently mixed." Tama ba, iyan 'yung paliwanag n'yo doon sa P150,000?*

Mr. Ortonio. Yes, that's correct, based on our reply.

Ms. Divinagracia. But nine days later, *sumulat ka ulit sa COA, supplementing that earlier reply. Your supplemental reply is dated March 22, 2024, which is Prosecution's Exhibit P-I-13-b.*

Now, *diyan sa supplemental reply, ipinaliwanag n'yong muli 'yung discrepancy na P150,000. Ngayon, ang paliwanag n'yo, I quote, "The reconciliation shows that an amount of P50 underpayment of reward and an amount of P100,000 under purchase of supplies were provided by Assistant Secretary Lemuel G. Ortonio out of his personal funds." Tama ba?*

But do you recall making that statement in your supplemental reply, Mr. Ortonio?

Mr. Ortonio. Yes. Based on the information also flashed on the screen, yes.

Ms. Divinagracia. Yes. *Sa iyo galing 'yung 100—Ikaw 'yung Lemuel G. Ortonio, Assistant Secretary, na pinapatunguhan, I mean, nire-refer dito sa sulat na ito, tama ba?*

Mr. Ortonio. That's correct po.

Ms. Divinagracia. So, *alam mo rin, dahil ikaw ang nag-abot ng pera, alam mo rin kung kailan siya inabot, kung kailan siya binigay, tama ba? Yes?*

Mr. Ortonio. Yes.

Ms. Divinagracia. So, by the time that you prepared your initial response to the Notice of Suspension, your letter dated March 13, 2024, *'yung Exhibit P-I-13-a na inyong tiningnan kanina, at that point, alam n'yo na rin na nagbigay ka ng P150,000, tama ba?*

Mr. Ortonio. But I had to confirm first with our Special Disbursing Officer at that time. So, we needed to make a reply. So, we sent an initial reply and submitted a supplemental reply.

Ms. Divinagracia. So, you are trying to say *na ginawa mo 'yung letter dated March 13, 2024, nakapagbigay ka na ng eksplanasyon na hindi mo pa bine-verify doon sa Special Disbursing Officer at sa Security Officer?*

Mr. Ortonio. There is already a coordination.

Ms. Divinagracia. There is already a coordination.

Mr. Ortonio. Yes. But—

Ms. Divinagracia. *Pero hindi mo naitanong—naitanong mo lamang, nine days later?*

Mr. Ortonio. That's why we submitted a supplemental reply to ensure that we provide the proper information.

Ms. Divinagracia. *At sinabi n'yo pa rito, that was "due to the urgency of the expenses." So, ibig sabihin may sinabi sa inyong expenses na urgent kaya humingi ng P150,000. In short, ipinaliwanag sa iyo kung bakit humihingi ng P150,000. Yes?*

Mr. Ortonio. *Ang na-mention—inilapit po ito sa akin ni Ms. Gina Acosta, our SDO.*

Ms. Divinagracia. *At sinabi niya.*

Mr. Ortonio. And then, she mentioned that there was a request from Colonel Lachica for an urgent—

Ms. Divinagracia. And there was urgency for that request, *hindi ba?*

Mr. Ortonio. Yes.

Ms. Divinagracia. *At hindi rin karaniwan na may humihingi sa iyo ng P150,000 from your own pocket? Hindi naman ito karaniwang ginagawa sa OVP or karaniwan ba ito?*

Mr. Ortonio. No, it's not common.

Ms. Divinagracia. Okay. *Pero noong gumagawa ka ng Notice of Suspension, bigla mong nakalimutan na mayroong P150,000.*

Ms. Ferrer. Your Honor.

Ms. Divinagracia. *Sinabi mo kanina—sinabi mo na kanina na in-explain sa iyo—*

The Presiding Officer. Let her finish the question. And then I will hear your objection, Counsel.

Ms. Divinagracia. *Sinabi mo na kanina na ipinaliwanag sa inyo ni Ms. Acosta na galing kay Colonel Lachica 'yung paliwanag noong urgency for the request. Tama ba?*

Mr. Ortonio. Yes.

Ms. Divinagracia. Yes.

The Presiding Officer. Counsel?

Ms. Ferrer. Asked and answered already, Your Honor.

The Presiding Officer. Proceed, Attorney Mae.

Ms. Divinagracia. Okay. Mr. Ortonio, you are Salary Grade 29, correct?

Mr. Ortonio. That's correct, Ma'am.

Ms. Divinagracia. And you're receiving roughly how much in salary monthly, Mr. Ortonio?

Ms. Ferrer. Your Honor, please.

The Presiding Officer. What is the objection, Counsel?

Ms. Ferrer. Relevance of the question.

Ms. Divinagracia. It's very relevant, Your Honor. It goes into the credibility of this witness.

The Presiding Officer. And if you can afford one-fifty, Counsel. If you remember, Gina said the same yesterday.

Witness will please answer the question.

Mr. Ortonio. Salary Grade 29, roughly about one-eighty, one-ninety, gross.

Ms. Divinagracia. So, *'yung ibinigay mo na P150,000 from your personal funds is just around P40,000 short of your monthly salary. Tama ba?*

Mr. Ortonio. That's correct.

Ms. Divinagracia. Yes. *Noong ibinigay mo ba ito, 'yung P150,000, may hiningi kang resibo patunay na nagbigay ka ng P150,000?*

Mr. Ortonio. At that time *po*, because of the urgency and *dahil humingi po ng tulong si Ms. Gina sa akin ay* I provided her with the request.

Ms. Divinagracia. And were you able to recover the P150,000, Mr. Ortonio?

Mr. Ortonio. Unfortunately, Ma'am, I was not reimbursed anymore.

Ms. Divinagracia. You were not reimbursed.

The Presiding Officer. Up to today, Mr. Ortonio?

Mr. Ortonio. Yes, Your Honor. I wasn't reimbursed anymore.

Ms. Divinagracia. *At itong P150,000 naman na ito, hindi ito nag-a-appear—'yung pagbigay mo ng P150,000, hindi ito nag-a-appear sa kahit anumang record ng Office of the Vice President?*

Mr. Ortonio. No.

Ms. Divinagracia. *Hindi. Now, pumunta na tayo sa purchase of supplies.*

Okay. Mr. Ortonio, *kasama sa sinasabi n'yong pinaglaanan n'yo ng confidential funds ay ang purchase of—or payment of purchased supplies, payment of tables and chairs, payment of desktop computers and printers. Tama ba?*

Mr. Ortonio. Correct.

Ms. Divinagracia. Okay. *Ang mga desktop computer, printer, mesa, at upuan ay mga bagay na hindi nauubos or tinatawag na non-consumable. Tama ba?*

Mr. Ortonio. Yes.

Ms. Divinagracia. Again, *labing—more than—or almost two decades na kayong naglilingkod sa gobyerno. In fact, naglingkod din kayo bilang pinuno ng Human Resource Management Office nito. Alam n'yo, Mr. Ortonio, na ang ari-ariang binili ng pondo ng bayan o pera ng bayan ay pag-aari ng gobyerno. Tama ba?*

Mr. Ortonio. Yes, I would say so.

Ms. Divinagracia. *At alam n'yo rin na nakatala ang ari-arian ng gobyerno. Ibig sabihin, 'yung mga government properties, these are recorded. May karampatang property number, property acknowledgment receipt, accountable officer, at annual inventory. Tama ba?*

Mr. Ortonio. Yes, if procurements through the regular fundings.

Ms. Divinagracia. Yes. *At isina-submit din ito, 'yung inventory na ito, isina-submit din ito sa opisina ng committee of—ng Commission on Audit. Tama ba?*

Mr. Ortonio. Yes. Yes, for the inventory.

Ms. Divinagracia. Okay. *Pero aaminin mo, you will confirm na para dito sa mga purchase ng supposed supplies, computers, tables and chairs, wala kayong sinabmit (submit) na inventory para dito sa COA. Tama ba?*

Mr. Ortonio. Specifically, for these items, they were not reflected because of—

Ms. Divinagracia. I'm not asking—Yes, thank you very much, Mr. Ortonio. I'm not asking for the reason.

Ms. Ferrer. Your Honor, please.

Ms. Divinagracia. I'm just asking for—I'm just asking whether or not you submitted an inventory to the COA.

The Presiding Officer. Attorney Kristine.

Ms. Ferrer. The witness is answering the question, Your Honor. If he can be allowed to answer.

The Presiding Officer. Again, let it be the subject matter of cross. I think the answer given was sufficient already.

Ms. Divinagracia. Okay. And *para din dito sa mga supplies na ito, wala ka ring nakitang—wala ring binigay sa iyo na invoice or official receipt. Wala nitong—Tama ba?*

Mr. Ortonio. None.

Ms. Divinagracia. Okay. *Wala ka ring nakitang records ng sales invoices na ito at mga official receipts sa buong record ng OVP. Tama ba?*

Mr. Ortonio. None, Ma'am.

Ms. Divinagracia. *Wala ring dokumento na magpapakita na ang mga bagay na ito ay idinoneyt (donate) ng OVP sa kahit sino man. Tama ba?*

Mr. Ortonio. No record in terms of the donation.

Ms. Divinagracia. Yes. *Hanggang ngayon, ikaw personally, Mr. Ortonio, hindi mo rin maituturo kung nasaan na itong mga mesa, upuan, supplies, computers na nagkakahalagang P3.5 million? Hindi mo na maituro kung nasaan sila?*

Mr. Ortonio. Considering that these are procurements for confidential activities, no, Ma'am. I would have no personal knowledge on where these items are.

Ms. Divinagracia. And I would suppose, *wala ring nakapagturo sa office ng OVP kung nasaan itong mga mesa, computer, supplies na ito. Tama ba?*

Ms. Ferrer. Your Honor, please.

The Presiding Officer. Attorney Kristine.

Ms. Ferrer. Speculative, Your Honor.

Ms. Divinagracia. How is that speculative, Your Honor?

Ms. Ferrer. Or asking for an opinion.

Ms. Divinagracia. How is it asking for opinion, Your Honor? I am asking whether to his knowledge, there was anyone in the OVP who could point to these non-consumable items.

Ms. Ferrer. Her word was—her wording was, "I suppose." She did not say, "to your knowledge."

Ms. Divinagracia. Okay, then I withdraw. I drop, Your Honor, the phrase "I suppose."

Mr. Ortonio, *tama ba—*

The Presiding Officer. Witness may answer if he knows.

Mr. Ortonio. No. I would not have any knowledge also if there are other personnel in the office who would know, in the OVP.

Ms. Divinagracia. Okay. Conversely, *hindi mo rin masasabi kung talagang—kung mayroong nakakaalam kung talagang nag-e-exist itong mga mesa, tables—sorry—tables and chairs, computers, at supplies.*

Ms. Ferrer. Your Honor, please. Already asked and answered, and repetitive.

The Presiding Officer. Move on, Counsel.

Ms. Divinagracia. Okay. Earlier, we—earlier, Mr. Ortonio, we just parked one item, 'yung certifications that were attached to the liquidation reports.

You will confirm, Mr. Ortonio, that the Vice President herself signed all those certifications.

Mr. Ortonio. Yes, ma'am, based on the documents that were presented.

Ms. Divinagracia. By the way, Mr. Ortonio, earlier you mentioned that you submitted PIORs. Did you ask Ms. Acosta and the security officer *kung ano, kung mayroon man, ano-ano itong mga threats na na-identify* in the course of the disbursement of the confidential funds? *Naitanong ninyo ba?*

Mr. Ortonio. No, I did not ask anymore, ma'am.

Ms. Divinagracia. Okay. So just to summarize, Mr. Ortonio, *doon sa August 22, 2022 letter—* May I request the technical booth to please flash on the screen the letter?

The Presiding Officer. Kindly flash the August 22, 2022 letter signed by Mr. Ortonio.

Ms. Divinagracia. Just to summarize, in that letter, *ang ibinigay ninyong paliwanag para sa confidential funds ay para sa tatlong bagay: good governance program, functional representation para sa travel ng pangulo, tama ba?*

Mr. Ortonio. Can I see the document first?

[The witness is going over the document]

Mr. Ortonio. Ma'am, I'll confirm on the good governance, but what we indicated, ma'am, is on the conduct of official engagements...

Ms. Divinagracia. Official engagements.

Mr. Ortonio. ...and functional representation...

Ms. Divinagracia. So three—

Mr. Ortonio. ...in domestic and—in international and domestic events.

Ms. Divinagracia. Okay. So, three items—three projects or three items. You have good governance program, you have official engagements, and functional representation, *tama ba?*

Mr. Ortonio. That's basically two, ma'am. That's the implementation for good governance program and conduct of official engagements and functional representation.

Ms. Divinagracia. Okay. Thank you, Mr. Ortonio, I stand corrected on that. So those two items.

Pagdating sa PFP, ang justification—for the 2022 PFP, ang justification was good governance program, tama ba?

Mr. Ortonio. Yes, based on the documents earlier.

Ms. Divinagracia. Okay. *Sa 2023 naman, socioeconomic delivery program?*

Ms. Ferrer. Asked and answered, Your Honor, earlier.

The Presiding Officer. I'm sorry, Counsel. What was the question, Attorney Mae?

Ms. Divinagracia. For the 2023 certification, Your Honor, the justification was socioeconomic delivery program.

Ms. Ferrer. Asked and answered.

The Presiding Officer. On the assumption that she's winding up, Atty. Kristine, because she said...

Ms. Divinagracia. Yes, Your Honor.

The Presiding Officer. ...she's summarizing the points that were—the points that the witness had already answered to, I will allow it. Witness may answer.

Yes, Mr. Ortonio, do you want the question repeated?

Mr. Ortonio. Yes, kindly repeat the question, ma'am.

Ms. Divinagracia. For the 2023, *ang paliwanag ninyo para sa confidential funds ay dahil gagamitin ito sa socioeconomic delivery program, tama ba?*

Mr. Ortonio. Yes, as indicated in the document earlier.

Ms. Divinagracia. Okay. *At sa mga certifications naman na isinumite ninyo in response to the AOM, sinabi dito na ginamit ang confidential funds para sa surveillance to ensure that no untoward incidents will happen, tama ba?*

Mr. Ortonio. Yes, based on the document earlier, ma'am.

Ms. Divinagracia. Based on the document. *At para naman sa sagot ninyo sa AOM, pati sa NS, ang sinabi naman ninyo, gagamitin ang confidential funds para sa surveillance activity that would help you determine and identify areas kung saan iro-roll out iyong mga proyekto ninyo, tama ba?*

Mr. Ortonio. That's one of the...

Ms. Divinagracia. That's one of—

Mr. Ortonio. ... one of the justifications that we indicated.

Ms. Divinagracia. Yes, which never appeared in the prior documents, *tama ba?*

Mr. Ortonio. Yes.

Ms. Divinagracia. Yes. So, in short, *nagbigay kayo ng apat na bersyon, apat na rason para sa isang pondo, tama ba?*

Ms. Ferrer. Your Honor, please.

The Presiding Officer. I was expecting something, Attorney Kristine. Yes.

Ms. Ferrer. It's misleading, Your Honor, *apat na bersiyon*, and conclusion of fact.

Ms. Divinagracia. Your Honor, if I may? If I may, Your Honor?

The Presiding Officer. I'll allow it, Attorney Kristine.

Ms. Divinagracia. Thank you.

The Presiding Officer. The witness is intelligent enough to be able to identify that indeed some answers were different from the previous ones they gave.

Ms. Divinagracia. And just to set the record straight, Your Honor—

The Presiding Officer. I'm just not so sure if it is four, but—

Ms. Divinagracia. Just to set the record straight, Your Honor, I did not say four, I mentioned five.

The Presiding Officer. *Ang dinig ko nga, apat eh. Ang dinig ko, apat eh.*

Ms. Divinagracia. Sorry. Yes, four.

The Presiding Officer. I don't know the number of versions you have, but you do admit that several versions or explanations were given, not the same—

Ms. Divinagracia. For the same—

The Presiding Officer. For the same expense?

Mr. Ortonio. There were different justifications.

Ms. Divinagracia. Okay. Different justifications for the same fund, for the same confidential fund, *tama ba?*

Mr. Ortonio. Can I clarify?

Ms. Divinagracia. Just say—Yes or no?

Mr. Ortonio. There were four explanations.

Ms. Divinagracia. There were four explanations for the same fund? Yes.

Mr. Ortonio. Yes.

Ms. Divinagracia. Yes. So, in short, *paiba-iba.*

Last item, Your Honor.

The Presiding Officer. Yes, proceed, Attorney Mae.

Ms. Divinagracia. Okay. Mr. Ortonio, *kanina sinabi mo na si vice president mismo ang humingi ng confidential fund sa simula't simula pa lang. Siya ang humingi ng 250 million para sa—mula sa DBM, tama ba?*

Mr. Ortonio. Yes.

Ms. Divinagracia. *Siya rin ang nag-decide kung anong amount, kung magkanong amount ang ire-request, tama ba? Ultimately, sa kaniya nanggaling ang decision, tama ba?*

Mr. Ortonio. Yes.

Ms. Divinagracia. *At pinirmahan niya rin ang approval para sa pag-release ng pondo, tama ba? Through the disbursement vouchers, tama ba?*

Mr. Ortonio. Yes.

Ms. Divinagracia. Yes. *Pinirmahan niya rin ang mga liquidation reports at certification supporting the liquidation reports, tama ba?*

Mr. Ortonio. Yes.

Ms. Divinagracia. Okay. In short, you will agree with me, this whole confidential funds matter...[words stricken off the record]

The Presiding Officer. Kindly replace it with words that are more acceptable, such as that everything was approved by and with the consent of or with the full knowledge of—it's up to you. I don't want to put words in your mouth.

Ms. Divinagracia. Mr. Ortonio, she was the architect, *iyong confidential funds na ito ...*

Ms. Ferrer. Objection, Your Honor.

Ms. Divinagracia. ... *kung paano ito idi-disburse at gagamitin, i-utilize ...*

Ms. Ferrer. Objection.

Ms. Divinagracia. ... *siya ang architect ng buong ito.*

The Presiding Officer. I will have to sustain the objection again, Counsel. Allow me.

Mr. Ortonio, *lahat nang nangyari at ginawa kaugnay ng confidential fund mula sa paghingi nito sa DBM, sa paggastos, kung paano ito ginastos, paano ito ni-liquidate, kasabay na iyong mga sagot na ibinigay kaugnay sa AOM, notice of suspension, and notice of disallowance, lahat ito ay alam, nasa ilalim ng superbisyon, pinahintulutan, at inotorisa ng ikalawang pangulo?*

Mr. Ortonio. Wait.

The Presiding Officer. *Gusto mo isa-isahin ko?*

Mr. Ortonio. Can you repeat, Your Honor?

The Presiding Officer. *Lahat ng bagay kaugnay sa confidential fund mula sa pag-request, sa pag-release, sa pag-encash, sa paggastos, sa pag-liquidate, sa pagsagot sa mga AOM, notice of suspension, at notice of disallowance ay, una, nalalaman ng ikalawang pangulo; pangalawa, inotorisa niya base sa mga pirma niya sa iba't ibang dokumento; at pangatlo, ay nasa ilalim ng kaniyang superbisyon bilang head of agency. Would that be an accurate statement? Or tell me if it's not.*

Mr. Ortonio. ... Based on my understanding, sir, and based on what I know, sir, yes, the vice president knows about the confidential activities and how it is being implemented.

The Presiding Officer. I'll pursue it further. *May ginawa ka ba na hindi alam o in-authorize ni Vice President Sara kaugnay sa confidential funds kasabay na iyong pagsagot mo sa mga AOM, notice of suspension, at disallowance?*

Mr. Ortonio. None, Your Honor.

The Presiding Officer. *Lahat alam niya at in-authorize niya?*

Mr. Ortonio. Yes, Your Honor.

The Presiding Officer. *Sa pagkakaalam mo, may ginawa ba si Gina o si Colonel Lachica kaugnay ng confidential funds mula sa disbursement—mula sa withdrawal, disbursement, at liquidation na hindi nalalaman o inotorisa ng ikalawang pangulo? If you know.*

Mr. Ortonio. As to Ms. Gina and Colonel Lachica, Your Honor, I would have no personal knowledge on it.

The Presiding Officer. Okay. Any final questions, Attorney Mae?

Ms. Divinagracia. That would be all for direct, Your Honor.

Ms. Ferrer. Your Honor, please.

The Presiding Officer. Yes, Attorney Mae—Attorney Kristine, rather.

Ms. Ferrer. Before we release the witness and adjourn, Your Honor, there is a consensus, Your Honor, that we will ask the Court. The respondent would like to ask the Court to remind the prosecution, Your Honor, not to use inappropriate words, Your Honor, like “scam,” “mastermind,” “*nagsisinungaling*.” This is the third time, Your Honor, that we have heard those words, specifically the word “scam.” And this is a solemn proceeding. This is a court of law, this is a court of procedure and actually a court of decorum, and we are not supposed to make insinuations, accusations, or conclusions, Your Honor. So, we request the Court to kindly remind the prosecution.

The Presiding Officer. Yes, I agree with counsel. Earlier, the Court made an admonition and reminder to the counsel for the panel of prosecutors but did not strike out those statements, but subsequent similar statements made were stricken off from the record by the Presiding Officer. But it does seem that it’s becoming a — I would rather use the word “habit” than pattern, for the panel of prosecutors to close their direct with such strong statements. So, kindly...

Yes, what is the pleasure of Senator-Judge Cayetano?

MANIFESTATION OF SENATOR-JUDGE CAYETANO (A)

Senator-Judge Cayetano (A). Thank you, Mr. Presiding Officer, Mr. Senate President, dear colleagues.

I just like to take note that the Presiding Officer made a ruling. We all know the intention and the duties of the prosecution. We admire your passion in trying to prove your allegations, but we are also all aware that the medium is the message. So, during the time of radio and even TV, you make that statement and then it is stricken off the record, it’s forgotten. There’s no, if I can use the word, mind-conditioning. And in fact, when I first became a senator in 2007, *talagang hahanapin mo talaga iyong* records. That’s why even here, *kapagka may* disagreements and *medyo nadala ng* emotion, *pinapa-strike* off the record. *At pagka sa labas ng* Senate nangyari, *naghamon ng* “you say that here *para magsagutan tayo*.”

So, the problem *nga* with coming up with words, especially—and this is for both sides and even for the Senate, Senator-Judges, when we use certain words that can be, *sa Tagalog, bansag. Binansagan mo na. Binansagan mo na na scam o scammer, binansagan mo na na nagnakaw, et cetera*. Personally, I don’t mind if you use words that is already in your pleadings or in your Articles of Impeachment, but of course, it still should come from the witness unless you can frame it in a way that...It’s not only the dignity of the Court. I’m just saying let’s all be aware that when we say it, even if we say “withdrawn” or even—both sides *ha, kahit sabihin mong* “withdrawn *na ito*” *o kahit sabihin mong* “nice try, nice try,” et cetera, we know that that’s for the cameras, not just for the Court. *Hindi ba? Kasi kaming bente kwatro*, whether we watch it here, we watch it in our cellphone, we watch it inside, *kami magde-decide*. But we all know we’re also trying to convince you, not we—the prosecution and defense are trying to convince the public that either the vice president or her office or whoever is guilty or innocent.

So, *iyon lang*. Let’s be circumspect without pointing fingers to anyone both sides *dahil nga kapagka may* certain word *na may* not only negative but *may* emotional attachment, *magba-viral na iyan*. And it will really affect the integrity not only of the court, but of the decision *sa huli, hindi ba?* So, I just like to agree with you and emphasize *na, you know*, in the future if you say that *nagkamali*, let’s not kid each other. *Kahit kaming mga senator-judges, nagkakamali din kami lalo kapag nag-i-interview na or kaharap na iyong mga vloggers or iyong traditional media*. But once *masabi mo*, it takes a life of its own, *hindi ba*, those words. So we have to really be more circumspect in choosing our words.

The Presiding Officer. I will allow Attorney Mae to comment before we proceed with other administrative matters. Yes, Attorney Mae?

Ms. Divinagracia. Your Honor, we apologize if sometimes we get carried away by our zeal and our passion, Your Honor. But we at the prosecution, we just want to call a spade a spade.

The Presiding Officer. Within limits, you may.

Ms. Divinagracia. Yes, Your Honor. But henceforth, to borrow the words of my colleague, Your Honor, we will try to behave.

The Presiding Officer. That will be part of the chair's ruling as well. However, since we're ending at 2:30, Attorney Christine, your cross will proceed tomorrow.

Ms. Ferrer. Yes, Your Honor.

ADMINISTRATIVE MATTERS

- The Presiding Officer manifested that the proceedings the following day would begin with the ruling on the manifestation of Attorney Sison last August 12, 2026 and will be followed by the brief explanation of Atty. Amando Ligutan, Counsel for the Panel of Prosecutors, not exceeding five minutes.
- Thereafter, the Court would proceed with cross-examination by the Counsel for the Respondent, and the redirect and re-cross, if any, by the Counsel of both parties. He informed the Senator-Judges that the session would convene at 3:00 p.m. that day.
- The Court acknowledged the Clerk of Court's report on the comparison of acknowledgment receipts (ARs) and directed that copies of its findings be furnished to the counsel for the parties and the Senator-Judges.
- On the condition of Mr. Fajarda, the Presiding Officer noted the Senate Medical and Dental Bureau's recommendation for him to take two weeks of rest counted from August 20, ending on September 3, 2026. Accordingly, he directed the Clerk of Court to issue the corresponding subpoena for Mr. Fajarda's appearance on September 7, 2026, at 10:00 a.m.
- The Presiding Officer clarified that the five-day witness disclosure rule, raised by Attorney Sison during the previous day's trial, applies only to witnesses not included in the pre-trial order and does not apply to those already listed therein. He assured Attorney Sheila Sison, Counsel for the Respondent, that she would have sufficient time for the cross-examination of Colonel Boransing, who was identified as the first witness for the next trial day.

MANIFESTATION OF THE COUNSEL FOR THE RESPONDENT

Regarding the Presiding Officer's ruling on the five-day period for the disclosure of the witness, Attorney Sison recalled that it arose from the proposal of the Panel of Prosecutors for a three-day period to disclose the witnesses, and the counter-proposal of the Counsel for the Respondent for a longer five-day period. She asked whether the five-day rule only applies to the witnesses who were not disclosed in the pre-trial order.

The Presiding Officer noted that the present circumstances were exceptional, as the Prosecution's intended witness was unavailable due to illness and had to be replaced by another witness identified in the pre-trial order. He however stated that the general rule stays and that the witnesses to be presented the following week should be announced by the Lead Prosecutor in open court on Wednesday of the preceding week, affording both parties adequate time to prepare. He emphasized that such arrangement would also apply to the Counsel for the Respondent during its turn to present their witnesses.

Representative Gerville Luistro, Counsel for the Prosecutor, suggested replacing the five-day notice rule with a four-day notice requirement. In reply, the Presiding Officer clarified that a Wednesday announcement for a Monday hearing still constitutes five days' notice and therefore does not require changing the existing rule, while recognizing that exceptions may be made as

circumstances arise, provided that both parties are afforded adequate time and a fair opportunity to prepare for the witness.

Attorney Sison requested that the disclosure of witnesses be also allowed via email after the Wednesday trial to ensure timely receipt by the other party.

The Presiding Officer reminded the prosecution to submit the proposed stipulation of facts, circumstances, or documents, at least one day before the scheduled presentation of the witness, with the goal of expediting the proceedings.

INQUIRY OF SENATOR-JUDGE ZUBIRI

Senator-Judge Zubiri inquired on the anticipated timeline for the impeachment proceedings, in light of the approaching budget season and the demands of the legislative calendar. He noted that Senators are scheduled to attend impeachment proceedings from Monday to Wednesday, conduct committee hearings on Thursdays, attend budget deliberations on various departments from Thursday through Saturday, placing additional demands on the senators and their staff. He asked whether the impeachment proceedings would continue until the December break or possibly extend to February, so that the legislative calendar could be adjusted accordingly.

The Presiding Officer stated that the Court was optimistic and hopeful that the impeachment proceedings would be completed before the end of the year. He further stated that a more specific schedule for the impeachment trial would be formulated once the chair of the Committee on Finance shall have finalized the calendar for the budget deliberations and bicameral conference committee meetings on the General Appropriations Bill.

ADJOURNMENT OF THE IMPEACHMENT TRIAL

The Presiding Officer declared the impeachment trial adjourned until ten o'clock in the morning of the following day.

It was 2:39 p.m.

I hereby certify to the correctness of the foregoing.

Approved on August 26, 2026

Atty. RENATO N. BANTUG JR.

Clerk of Court

